

1a Term
At an of the Supreme Court of the State of
New York, held in and for the County of
Cortland at the Courthouse thereof, Supreme
Court Building, 46 Greenbush Street,
Cortland, New York on the 20th day of
September, 2024.

PRESENT:

Honorable MARK G. MASLER
Justice Presiding.

SUPREME COURT THE STATE OF NEW YORK:
COUNTY OF CORTLAND

-----X
CITIZENS BANK, N.A. Index No: EF23-030

Plaintiff.

-against-

**JUDGMENT OF FORECLOSURE AND
SALE**

GABRIEL GOODWIN A/K/A GABRIEL F.
GOODWIN;
BANK OF AMERICA, N.A.;
DISCOVER BANK;
AMERICAN EXPRESS NATIONAL BANK;

Mortgaged Premises:
5319 Meadowview Lane
Homer, New York 13077

Defendants.

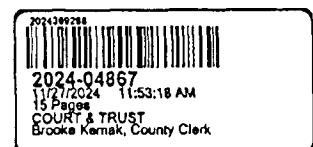
Mortgage Servicer: Citizens Bank, N.A.

Mortgage Servicer Phone #: 800-456-8855

-----X

Upon the summons and complaint filed herein on January 23, 2023, and notice of
pendency of action previously filed herein on January 23, 2023, and on the attorney's statement
of Jose O. Hasbun, Esq., dated February 27, 2024, demonstrating that all of the defendants have
been duly served with the summons and complaint herein and the affidavits of service of the
defendant previously filed herein, and upon the Order entered herein on April 23, 2023, ¹⁴¹ ^{MGM}
appointing Russell Maines, Esq., as referee to ascertain and compute the amount due to the
plaintiff pursuant to the note and mortgage and to protect the lien of said mortgage, and to

- 1 -



examine and report whether the mortgage premises can be sold in parcels; and

Upon reading and filing the report of the referee dated August 6, 2024, from which report it appears that the sum of \$195,123.46 was due to plaintiff, as of May 31, 2024, on the note and mortgage described in the complaint, and that the mortgaged premises should be sold in one parcel; and

Upon reading and filing the affirmation of regularity of George Franke, Esq., sworn to on August 12, 2024, from which it appears that this action was brought to foreclose a mortgage on certain real property situated in the County of Cortland and State of New York more commonly known as 5319 Meadowview Lane, Homer, New York 13077 and that the whole amount secured by said mortgage is due and payable as computed in the aforesaid Referee's report, and that all of the defendants herein have been duly served with the summons and complaint, and upon the entry of default judgment on plaintiff's foreclosure complaint against the defendants, and that none of the defendants is an infant, incompetent or absentee,

"Sale" is herein defined as the foreclosure auction date.

NOW, on motion of McCabe, Weisberg & Conway, LLC, attorneys for the plaintiff, it is

ORDERED, that the motion is granted, and it is further,

ORDERED, ADJUDGED and DECREED, that the report of the Referee, Russell Maines, Esq., dated August 6, 2024, by and the same is hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED and DECREED, that plaintiff is entitled to judgment establishing the validity of said mortgage and that the plaintiff ^{is} ~~is~~ entitled to recover upon said mortgage herein the sum of \$195,123.46, with interest thereon from Saturday, June 1, 2024, to date of the closing of title of the referee's sale of the mortgaged premises, and also any amount

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paid by plaintiff for local real estate taxes, water charges and assessments, hazard and F.H.A. insurance, and the reasonable costs of preservation and protection of the property; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Russell R. Maines, Esq., 123 South Cayuga Street, Suite 404, Ithaca, New York 14851-6514, (607) 200-3707, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or

the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee

shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for

\$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$195,123.46 with interest at the note rate from June 1, 2024, until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the

note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,115 to the Plaintiff for costs and disbursements in this action, as taxed by the clerk, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$4,950.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after

applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Gabriel Goodwin in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of

the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

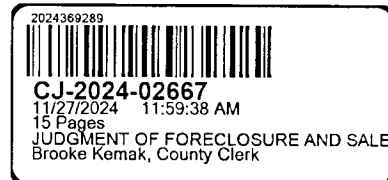
Said property is commonly known as 5319 Meadowview Lane, Homer, New York 13077.

Dated: November 26, 2024
Cortland, New York

ENTER


HON. MARK G. MASLER
Supreme Court Justice





**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Purchaser's Signature

Dated: _____

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

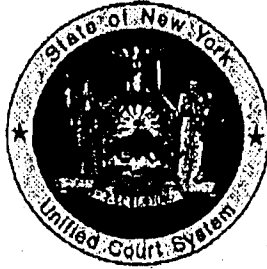
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a Term of the Supreme Court, of the State of New York held in and for the County of Cortland, at the Cortland County Courthouse, Cortland, New York, on the 6th day of December 2024

PRESENT: HON. MARK G. MASLOE,
Justice Presiding.

JUSTICE OF THE SUPREME COURT
AMERICU CREDIT UNION

Plaintiff,

-VS-

TRAVIS W. FELLOWS;
JESSICA FELLOWS S/H/A MARY DOE #1;

Defendants.

INDEX NO.: EF23-620

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
1893 Preble Road
Preble, (Town of Preble) NY 13141

SBL#: 27.10-01-09.000

Mortgage Servicer: AMERICU
CREDIT UNION

Mortgage Servicer Phone #: 1-800-
669-0340 - Ext.#6732

UPON the Summons, Complaint, and Notice of Pendency filed in this action on dated November 5, 2024, with all exhibits thereto, November 7, 2023, the affirmation of Molly L. Chapman, Esq., and the Plaintiff's Affidavit and Amount Due by Harry Swanson who is Vice President of AmeriCU Credit Union duly sworn to on August 6, 2024, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and either has voluntarily appeared either personally or by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and

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15 Pages
COURT & TRUST
Brooke Kernak, County Clerk

It appearing that more than the legally required number of days has elapsed since defendants TRAVIS W. FELLOWS and JESSICA FELLOWS S/H/A MARY DOE #1 were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that non-appearing defendants TRAVIS W. FELLOWS and JESSICA FELLOWS S/H/A MARY DOE #1 are not absent, in accordance with RPAPL §1321(2); and

UPON a Referee having been appointed by Order dated June 27, 2024 to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Patrick M. Snyder, Esq. dated September 24, 2024, showing the sum of \$96,713.95 due as of August 2, 2024 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Molly L. Chapman, Esq., attorney for Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the

mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be performed to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A, sold, within 90 days of the date of this Judgment, in one parcel, at a public auction ~~at the~~ at the

MGM

Cortland County Courthouse, 46 Greenbush Street, Cortland, NY 13045, Cortland County, New York, by and under the direction of Patrick M. Snyder, Esq. who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in:

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to 36.2(c) ("Disqualifications from appointment") and 36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR §2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid, and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or TOLA account in his/her own name as Referee, in accordance with CPLR §2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said escrow or IOLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR §8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in

accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$96,713.95 with interest at the note rate from March 1, 2023 until August 2, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,485.50 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ — 0 — is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff

as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third," and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Travis W. Fellows in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003, and §5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or person entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 1893 Preble Road, Preble, NY 13141

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ **HGM**

~~Schedule A.~~

ENTER:

DATED:

December 10, 2024
Cortland, New York

MGM

Hon. Mark G. Masler
Supreme Court Justice

Brooke Kemak

2024389612



CJ-2024-02729

12/11/2024 12:01:17 PM

15 Pages

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the ____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

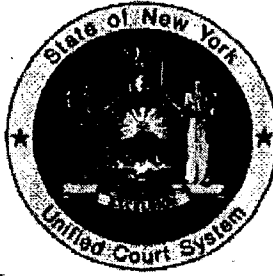
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a ~~IAS Term Part~~ of the
Supreme Court of the State of New
York, held in and for the County of
CORTLAND, at the Supreme
Courthouse, 46 Greenbush Street,
Suite 301, Cortland, NY 13045-
2772, on the 19th day of
July, 2024.

PRESENT:

HON. MARK G. MASLER
Justice Presiding.

-----X
CAG National Fund I LLC,

Plaintiff,

-against-

Toby Pierce a/k/a Toby Burton Pierce, as heir at
law, next of kin, and devisee of the Estate of Donald
G. Pierce a/k/a Donald George Pierce, New York
State Department of Taxation and Finance, United
States of America Department of Treasury

"JOHN DOE #1" through and including "JOHN
DOE#25", the Defendants last named in quotation
marks being intended to designate tenants or
occupants in possession of the herein described
premises or portions thereof, if any there be, said
names being fictitious, their true name being
unknown to Plaintiff,

Defendants.
-----X

Index No. EF23-128

**EXPEDITED JUDGMENT
OF FORECLOSURE AND
FOR VACANT AND
ABANDONED PROPERTY**

Property Address:
6449W Scott Rd
Homer, NY 13077

Section 34.00
Block 02
Lot 06.000

Rushmore Loan
Management Services, LLC
888-504-6700

UPON the Summons and Complaint duly filed in the Court on the 9th day of March,
2023, and the Notice of Pendency duly filed on 9th day of March, 2023; and

UPON the Motion for Expedited Judgment of Foreclosure and Sale for Vacant and
Abandoned Property dated April 19, 2024 and all proceedings thereon;

UPON reading the Affidavit of Frank Velazquez, Assistant Secretary of Nationstar Mortgage LLC, in Support of Motion for Expedited Judgment of Foreclosure and Sale For Vacant and Abandoned Property sworn to March 27, 2024, who is a representative of Plaintiff, the holder of the Note and Mortgage, attesting to the possession and ownership of the Note and Mortgage, the vacancy of the Mortgaged property and the inspections conducted, and the amounts due and owing to the Plaintiff;

AND UPON reading the Affirmation of Karen B. Migdal, Esq. in Support of Motion for Expedited Judgment of Foreclosure and Sale For Vacant and Abandoned Property dated April 23, 2024 and the exhibits thereto, from which it appears that (i) the Defendants have been duly served with the Summons and Complaint in this action; (ii) more than the legally required number of days had elapsed since said Defendants was so served; (iii) Defendants did not serve any answer to said Complaint, nor had its time to do so been extended; (iv) no Defendant is an infant, incompetent or in the military service; and (v) the Complaint herein and Notice of Pendency containing all the particulars required to be stated therein was duly filed in the Office of the Clerk of the County of CORTLAND on the 9th day of March, 2023, and has not been amended to add new parties or to embrace real property not described in the original Complaint; and having established to the Court's satisfaction that a judgment against Defendant is warranted;

AND, pursuant to RPAPL § 1309(2)(b), the Court has deemed the subject property as vacant and abandoned, *based on the proof set forth in the affidavit of Frank Velazquez*

AND, pursuant to RPAPL § 1309(1), the Court has confirmed the amount due to the Plaintiff upon the Note and Mortgage set forth in the Complaint and whether the Mortgaged premises can be sold in parcels, without the appointment of a referee to compute;

AND, upon proof of due notice of this motion upon all parties who had not waived the same, and upon proof of service of the Motion as provided therein,

NOW ON APPLICATION of Stein, Wiener & Roth, attorneys for the Plaintiff, it is

ORDERED, that the motion by Plaintiff is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the above-described Mortgaged premises is hereby deemed VACANT AND ABANDONED; and it is further

ORDERED, ADJUDGED AND DECREED, that it appears that the sum of \$354,095.94 was due as of January 11, 2024 as stated to be due and owing from Borrower in the Affidavit of Fank Velazquez, Assistant Secretary, sworn to March 27, 2024, in Support of Motion for Expedited Judgment of Foreclosure and Sale For Vacant and Abandoned Property, and the same is hereby to the extent provided for herein ratified and confirmed in its entirety; and it is further

~~**ORDERED, ADJUDGED AND DECREED**~~

ORDERED, ADJUDGED AND DECREED, that the Mortgaged premises should be sold in one parcel; and it is further

ORDERED, ADJUDGED AND DECREED, that pursuant to R.P.A.P.L. §§ 1309 and 1351, entering a Judgment of Foreclosure and Sale is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the above-described Mortgaged premises or such part thereof as may be sufficient to discharge the Mortgage debt, the expenses of the sale and the costs of this action as provided by the Real Property Actions and Proceedings Law be sold, in one parcel, within 90 days of the date of this Judgment, at public auction at

the Cortland County Courthouse
pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A
by and under the direction of James J. Baranello, Esq. who is
39 Church Street, Cortland, New York
hereby appointed Referee for that purpose, that the said Referee shall set the date of sale and give

public notice of the time and place of sale in accordance with R.P.A.P.L. § 231 in

the Cortland Standard, and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting his appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualification from appointment") and § 36.2(d) ("Limitation on appointments based upon compensation"); and if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid or Terms of Sale from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED, that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED, that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that said Referee shall accept at such sale the highest bid offered by a bidder, who shall be identified upon the Court record, and shall require that such successful bidder immediately pay to the Referee in cash or certified or bank

check payable to such Referee, ten percent of the sum bid and shall execute Terms of Sale for the purchase of the premises, unless such successful bidder is the Plaintiff herein, in which case, no deposit against the purchase price shall be required, and it is further

ORDERED, ADJUDGED AND DECREED, that in the event that the first successful bidder fails to immediately pay the ten percent deposit as provided herein or fails to execute the Terms of Sale immediately following the bidding upon the subject property, the property shall thereafter immediately, on the same day, be reoffered at auction, and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED, that the closing of title shall take place at the office of the Referee or at such other location as the Referee shall determine within forty-five days after such sale unless otherwise stipulated by all parties. The Referee shall transfer title only to the successful bidder at the auction. Any delay or adjournment of the closing date beyond forty-five days may be stipulated among the parties, with the Referee's consent, up to ninety days from the date of sale, but any adjournment beyond ninety days may be set only with the approval of this Court, and, it is further

ORDERED, ADJUDGED AND DECREED, that the Referee deposit all funds received pursuant to this Order in his/her own name as Referee in an escrow or SOLA account Bank ~~within CORTLAND County~~, and it is further

ORDERED, ADJUDGED AND DECREED, that said Referee on receiving the proceeds of such sale shall forthwith pay therefrom:

FIRST: The statutory fees and commissions of said Referee pursuant to CPLR § 8003 (b) which shall not exceed \$750 ~~\$500~~ unless the sale price (the amount of the accepted bid) exceeds

~~\$50,000. In the event the sale price exceeds fifty thousand dollars and additional compensation (including commissions) in excess of \$500 is sought pursuant to CPLR § 8003(b), and if no surplus monies are produced by the sale, the parties may present a stipulation, signed by the Referee and all parties appearing, agreeing to a stated sum, to be so Ordered by the Court. Where surplus monies will be available following distribution of sums as provided herein, or where the parties are unable to agree to the Referee's proper compensation under CPLR § 8003(b), application shall be made to this Court on notice to all parties known to be entitled to claim against any surplus monies, including the defaulting owner of the equity of redemption. Such application shall be promptly submitted to the Court within five days of the transfer of the deed and prior to filing the Report of Sale. The five day period for payment of surplus money into Court as set forth in RPAPL § 1354(4), and the thirty day period set forth in RPAPL § 1355 for the filing of the Report of Sale shall be deemed extended pending the decision of the Court regarding such application.~~ MSM

In the event a scheduled sale is cancelled or postponed, pursuant to CPLR § 8003(a), Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation unless the Referee has requested the delay. Such compensation may be recouped from the proceeds of sale as a cost to Plaintiff. This Order shall constitute the necessary prior authorization for compensation as set forth herein.

No compensation in excess of \$750, including compensation authorized pursuant to CPLR § 8003(a) for computation of the sum due to Plaintiff, may be accepted by the Referee without Court approval and compliance with the filing provisions of Section 36.4 of the Rules of the Chief Judge.

SECOND: Pursuant to Real Property Actions and Proceedings Law § 1354, in accordance with their priority according to law, taxes, assessments, sewer rents, water rates and any charges placed upon the property by a governmental agency which have priority over the foreclosed Mortgage, which are liens on the premises at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment.

THIRD: The expenses of the sale, including the cost of advertising as shown on the bills presented and certified by said Referee to be correct, copies of which shall be annexed to the Report of Sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees accessed.

FOURTH: Said Referee shall then pay to the Plaintiff or its attorney the following:
Amount Due: \$354,095.94 the said amount so confirmed due as aforesaid, together with interest thereon pursuant to the terms of the Note from January 11, 2024 the date the interest was calculated to in said Affidavit, to the date of entry of this Order, at the per diem rate of \$ 42.98 and thereafter at the statutory post-judgment rate to the date of transfer of title, or so much thereof as the purchase money of the Mortgaged premises will pay of the same, together with any advances as provided for in the Note and Mortgage, which Plaintiff has made for taxes, insurance, principal and interest and any other charges due to prior Mortgages, or to maintain the premises pending consummation of this foreclosure sale, not previously included in the computation

FIFTH: Costs and Disbursements: \$ 2,348 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as

reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

SIXTH: Surplus monies arising from the sale shall be paid into Court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local county rules regarding surplus moneys; and it is further

ORDERED, ADJUDGED AND DECREED, that in case the Plaintiff be the purchaser of said Mortgaged premises at said sale, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver only to the Plaintiff a deed of the premises sold upon the payment to said Referee of the sum awarded to him or her under the above provisions marked "FIRST", "SECOND", and "THIRD" if such expenses were paid by the Referee, or in lieu of the payment of said last mentioned amounts, upon filing with said Referee receipts of the proper municipal authorities showing payment thereof. The balance of the amount bid, after deducting therefrom the aforementioned payments to the Referee for compensation and expenses, taxes, assessments, sewer rents, water rates, and priority liens of a governmental agency, shall be allowed to the Plaintiff and applied by said Referee upon the amounts due to the Plaintiff as specified in item marked "FOURTH". If upon so applying the balance of the amount bid, there shall be a surplus over and above the said amounts due to the Plaintiff, the Plaintiff shall pay to the said Referee, upon delivery to Plaintiff of said Referee's deed, the amount of such surplus ~~which~~ which shall be applied by the Referee, upon motion made *MA* pursuant to RPAPL § 1351(3) and proof satisfactory to the Referee of the sums due thereon, to any subordinate Mortgage duly recorded against the property, pursuant to RPAPL § 1354(3), which payment shall be reported in the Referee's Report of Sale. Any surplus remaining after all

payments as herein provided shall be deposited into Court in accordance with RPAPL § 1354(4) and the Referee shall immediately give notice of such surplus to the owner of the Mortgaged premises as identified by Plaintiff at the time of the sale, and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, all taxes, assessments, water rates, sewer rents and other encumbrances which, at the time of sale, are liens or encumbrances upon said premises will be paid by the purchaser to the Referee in addition to the bid price, which sums shall become part of the proceeds of sale, unless the purchaser shall, previous to the delivery of the Deed, produce to the Referee proof of the payment of such liens, provided further that no tax, assessment, water charge, sewer rent or other encumbrances shall be required to be paid unless such lien shall have become due and payable at the time of sale. Upon receipt of said additional sums, the Referee shall forthwith pay therefrom the taxes assessments, water rates or sewer rents which are or may become liens on the premises with such interest or penalties which may lawfully have accrued thereon to the day of payment; and it is further

ORDERED, that Plaintiff shall accept the proceeds of the sale in satisfaction of the Mortgage debt and that Plaintiff shall not seek a deficiency judgment pursuant to RPAPL §1371; and it is further;

ORDERED, ADJUDGED AND DECREED, that the purchaser or purchasers at such sale be let into possession on production of the Referee's deed or deeds; and it is further

ORDERED, ADJUDGED AND DECREED, that each and all of the Defendants in this action, and all persons claiming under any of them after the filing of such Notice of Pendency of this action, be and they are hereby forever barred and foreclosed of all right, claim, lien, title, interest and equity of redemption in the said Mortgaged premises and each and every part thereof; and it is further

ORDERED, ADJUDGED AND DECREED, that said premises is to be sold in one parcel in "as is" physical Order and condition on the day of sale, subject to any state of facts that an inspection of the premises would disclose, any state of facts that an accurate survey of the premises would show, any covenants, restrictions, declarations, reservations, easements, right of way and public utility agreements of record, any building and zoning ordinances of the municipality in which the Mortgaged premises is located and possible violations of same, any rights of tenants or persons in possession of the subject premises, prior liens of record, if any, except those liens addressed in section 1354 of the Real Property Actions and Proceedings law, and any equity of redemption of the United States of America to redeem the premises within 120 days from the date of sale. Risk of loss shall not pass to purchaser until closing of title; and it is further

ORDERED, that the Referee appointed herein is subject to the requirements of Rule 36.2(c) of the Chief Judge, and if the Referee is disqualified from receiving an appointment

pursuant to the provisions of that Rule, the Referee shall notify the Appointing Judge forthwith;
and it is further

ORDERED, that a copy of this Judgment with Notice of Entry shall be served upon the designated Referee, the owner of the equity of redemption as of the date of this Order, any tenants named in this action and any other party entitled to notice within twenty days of entry and no less than thirty days prior to sale; and it is further

ORDERED, that the Plaintiff shall serve a copy of the Notice of Sale upon the Owner of Equity of Redemption at both his/her last known address and the property address (affidavit of such service shall be presented to the Foreclosure Clerk on or before the auction sale) and upon ~~the Foreclosure Department~~ ^{MGM} at least ten (10) days prior to the scheduled sale; and it is further

ORDERED, that the caption of this action as amended, shall read as follows:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
CAG National Fund I LLC,

Index No. EF23-128

Plaintiff,

-against-

Toby Pierce a/k/a Toby Burton Pierce, as heir at law,
next of kin, and devisee of the Estate of Donald G.
Pierce a/k/a Donald George Pierce, New York State
Department of Taxation and Finance, United States of
America Department of Treasury

Defendants.
-----X

Said premises being foreclosed is known as and by the street number 6449W Scott Rd, Homer,
NY 13077, ~~more particularly described in the annexed "Schedule A" annexed hereto and made~~ *MGM*
~~a part hereof~~

DATED: October 15, 2024
Cortland, New York

ENTER:

MGM
Hon. MARK G. HASLER
Supreme Court Justice

Brooke Kemak



CJ-2024-02494
10/15/2024 03:30:02 PM
17 Pages
JUDGMENT OF FORECLOSURE AND SA
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

STATE OF NEW YORK
SUPREME COURT:

COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

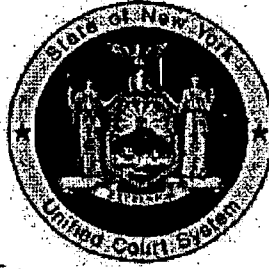
Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

Attorney's Email



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

2024-04217
10/11/2024 01:10:48 PMCOURT & TRUST
Brooke Kemak, County Clerk

1st Term
At Part 1 of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 20th day of
September, 2024.

PRESENT: Hon. Mark G Masler, J.S.C.
JUSTICE OF THE SUPREME COURT

Nationstar Mortgage LLC,

Plaintiff(s),

v.

Jeremiah H. Verne; The United States of America acting
through the Secretary of Housing and Urban Development,

Defendant(s).

INDEX NO. EF23-455

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
2595 State Route 215
Cortland, NY 13045

SBL #: Section 116.00 Block
01 Lot 18.000

Mortgage Servicer: Mr.
Cooper

Mortgage Servicer Phone #:
(888) 480-2432

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 22nd
day of August, 2023, on the Additional Notice of Pendency filed on the 1st day of November,
2023, the Notice of Motion dated July 1, 2024, the affirmation by Barbara Dunleavy, Esq., dated July 1, 2024 the
affidavit of merit and amount due by Rebecca C Wallace, who is Document Execution
Associate, duly sworn to on April 23, 2024, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

required number of days has elapsed since defendants, Jeremiah H. Verne and The United States of America acting through the Secretary of Housing and Urban Development, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants, Jeremiah H. Verne and The United States of America acting through the Secretary of Housing and Urban Development, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of John Delvecchio Esq. dated June 3, 2024, showing the sum of \$117,746.31 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37.

RECEIVED NYSCEF: 10/11/2024

the mortgage debt, the expenses of the sale, and the costs of this action as provided by the Pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A
RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction¹ at **MGM**
the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of John
Delvecchio, Esq., 4030 West Road, Cortland, NY 13045, (607)299-4796 who is hereby
appointed Referee for that purpose; that said Referee give public notice of the time and place of
sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment")
and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is
disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from
accepting or retaining any funds for him/herself or paying funds to him/herself without
compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at
the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors
and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the
sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed
by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably
practicable; and it is further

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$117,746.31 with interest at the note rate from April 9, 2024 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$3,410.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$2,900.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Jeremiah H. Verne, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,

Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,

Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2595 State Route 215, Cortland, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~

ENTER

DATED: October 8 2024
Cortland, New York

MGM
Hon. Mark G Masler, J.S.C.
Justice of the Supreme Court

Brooke Kemak



CJ-2024-02487
10/11/2024 01:10:48 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

Plaintiff(s),

TERMS OF SALE

Index No.:

v

Defendant(s).

_____ has this the _____ day of _____, 20____,
purchased the real property described in the accompanying Terms of Sale for the sum of
\$ _____.

I hereby acknowledge reading the preceding Terms of Sale, agree they are a binding contract and
consent to each and every provision, and promise and agree to comply with same.

Dated: _____

Purchaser's Signature

Received from the said Purchaser the sum of \$ _____, being ten percent of the
amount bid by the said Purchaser(s) for property sold by me, under the Judgment in the above
captioned action.

Referee's Signature

Purchaser's Contact Information:

Plaintiff's Contact Information:

Name

Name

Phone No.

Phone No.

Purchaser's Attorney's Name

Email

Attorney's Phone No.

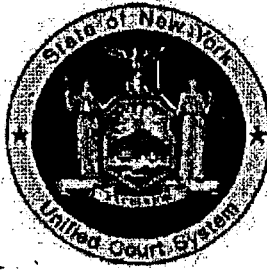
Attorney's Email

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

FILED: CORTLAND COUNTY CLERK 10/11/2024 01:07 PM

INDEX NO. EF23-455

NYSCEF DOC. NO. 37

RECEIVED NYSCEF: 10/11/2024

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a term of Supreme Court of the State of New York held in and for the County of CORTLAND at the CORTLAND County Courthouse at 46 Greenbush Street, Suite 301, Cortland, NY 13045, on the 23rd day of July, 2024.

PRESENT: HON. JULIE A CAMPBELL, A.J.S.C.
-----X
KEYBANK NATIONAL ASSOCIATION,

Plaintiff,

-against-

ROBERT JOHNSON, JR. AKA ROBERT FRANCES JOHNSON, JR, AS HEIR, DEVISEE, DISTRIBUTE OF THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; ANNE M. PARKER AKA ANNE M. JOHNSON, AS HEIR, DEVISEE, DISTRIBUTE OF THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; ANY AND ALL KNOWN OR UNKNOWN HEIRS, DEVISEES, GRANTEES, ASSIGNEES, LIENORS, CREDITORS, TRUSTEES AND ALL OTHER PARTIES CLAIMING AN INTEREST BY, THROUGH, UNDER OR AGAINST THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; CITY OF CORTLAND; CORTLAND COUNTY DEPARTMENT OF SOCIAL SERVICES; UNITED STATES OF AMERICA, ACTING ON BEHALF OF DEPARTMENT OF TREASURY - INTERNAL REVENUE SERVICE; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE,

Defendants.

-----X

Index No. EF19-370

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

Mortgaged Premises:
5 Woodland Avenue
Cortland, NY 13045

Section: 86.47
Block: 02
Lot: 24.000

Mortgage Servicer:
KeyBank
Mortgage Service Phone
Number: 866-325-9653

GM# 57253.0028



2024-03013
07/24/2024 09:01:37 AM

COURT & TRUST
Brooke Kemak, County Clerk

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 25th day of March, 2019, the Amended Notice of Pendency filed on July 10, 2022, the Second Amended Notice of Pendency filed on February 1, 2023, the Notice of Motion dated June 14, 2024, the affirmation of Monica G. Christie, Esq., and the exhibits annexed thereto, the Affidavit in Support by Dana Steinkirchner duly sworn to on April 27, 2023, together with exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants, **ROBERT JOHNSON, JR. AKA ROBERT FRANCES JOHNSON, JR, AS HEIR, DEVISEE, DISTRIBUTE OF THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; ANNE M. PARKER AKA ANNE M. JOHNSON, AS HEIR, DEVISEE, DISTRIBUTE OF THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; ANY AND ALL KNOWN OR UNKNOWN HEIRS, DEVISEES, GRANTEES, ASSIGNEES, LIENORS, CREDITORS, TRUSTEES AND ALL OTHER PARTIES CLAIMING AN INTEREST BY, THROUGH, UNDER OR AGAINST THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; CITY OF CORTLAND; CORTLAND COUNTY DEPARTMENT OF SOCIAL SERVICES; UNITED STATES OF AMERICA, ACTING ON BEHALF OF DEPARTMENT OF TREASURY - INTERNAL REVENUE SERVICE; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE** were so served; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted, and

UPON the affidavit of mailing reflecting compliance with CPLR § 3215(g)(3)(iii); and

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2) and

UPON A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Patrick Snyder, Esq. dated April 9, 2024, showing the sum of \$50,728.05 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to received same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Monica G. Christie, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted, and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at Cortland County Courthouse, 46 Greenbush St., Cortland, NY 13045, on a date to be set by the court, by and under the direction of Patrick Snyder, Esq., 70 Port Watson Street, Cortland, NY 13045, telephone number (607) 753-8050, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place in accordance with

RPAPL § 231 in The Cortland Standard;
and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) (“Disqualifications from appointment”) and §36.2 (d) (“Limitations on appointments based upon compensation”); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff’s attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest

bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his attorney IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation

proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his attorney IOLA account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 200.00 for each adjournment or cancellation, unless the Referee caused the delay];

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: **\$50,728.05** with interest at the note rate from May 1, 2022 until the entry of Judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 5,814.30 adjudged to the Plaintiff for costs and disbursements in this action (*add if applicable*, as taxed or calculated by the Clerk and inserted herein), with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83,~~

Attorney Fees: \$ 4,500.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of

entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second, "Third", and "Fourth" above are insufficient to

pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against the defendants in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the

court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 5 Woodland Avenue, Cortland, NY 13045.

The legal description of the mortgaged property referred to herein is annexed hereto as
Schedule A.

Dated: July 23, 2024

ENTER:

fla cpl
Digitally signed by
Hon. Julie A. Campbell
7/23/2024, 4:11:24 PM

HON. JULIE A CAMPBELL, A.J.S.C.

Brooke Kemak



CJ-2024-01377

07/24/2024 09:01:37 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

GM# 57253.0028

FILED: CORTLAND COUNTY CLERK 02/01/2023 03:19 PM

INDEX NO. EF19-370

NYSCEF DOC. NO. 82

RECEIVED NYSCEF: 02/01/2023

SCHEDULE A- LEGAL DESCRIPTION

ALL THAT TRACT OR PARCEL OF LAND, SITUATE IN THE CITY OF CORTLAND, COUNTY OF CORTLAND AND STATE OF NEW YORK, BOUNDED AND DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT IN THE EAST STREET LINE OF WOODLAND AVENUE, SAID POINT BEING LOCATED ALONG SAID STREET LINE S 11 DEG 05' W A DISTANCE OF 225 FEET FROM THE SOUTH LINE OF MADISON STREET;

THENCE RUNNING S 81 DEG 59' E A DISTANCE OF 136.51 FEET TO A POINT;

THENCE RUNNING S 10 DEG 20' W A DISTANCE OF 60.00 FEET TO A POINT;

THENCE RUNNING N 81 DEG 58' W A DISTANCE OF 137.30 FEET TO A POINT IN THE EAST STREET LINE OF WOODLAND AVENUE;

THENCE RUNNING ALONG SAID STREET LINE N 11 DEG 05' E A DISTANCE OF 60.00 FEET TO THE POINT AND PLACE OF BEGINNING AND CONTAINING 0.188 ACRES OF LAND.

SUBJECT TO ALL EASEMENTS, COVENANTS, CONDITIONS, RESERVATIONS, LEASES AND RESTRICTIONS OF RECORD, ALL LEGAL HIGHWAYS, ALL RIGHTS OF WAY, ALL ZONING, BUILDING AND OTHER LAWS, ORDINANCES AND REGULATIONS, ALL RIGHTS OF TENANTS IN POSSESSION, AND ALL REAL ESTATE TAXES AND ASSESSMENTS NOT YET DUE AND PAYABLE.

BEING THE SAME PROPERTY CONVEYED BY DEED RECORDED IN VOLUME 474, PAGE 102, OF THE CORTLAND COUNTY, NEW YORK RECORDS.

Section 86.47, Block 02, Lot 24.000

Property Address: 5 Woodland Ave, Cortland, NY 13045

Index No: EF19-370

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF CORTLAND
KEYBANK NATIONAL ASSOCIATION, Plaintiff. -against- ROBERT JOHNSON, JR. AKA ROBERT FRANCES JOHNSON, JR, AS HEIR, DEVISEE, DISTRIBUTE OF THE ESTATE OF SYLVIA H. ROBERTS AKA SYLVIA H. JOHNSON; et al., Defendants.
PROPOSED JUDGMENT OF FORECLOSURE AND SALE
GREENSPOON MARDER LLP Attorneys for Plaintiff 1345 Avenue of the Americas, Suite 2200 New York, NY 10105 P: (212) 524-5000 Pursuant to 22 N.Y.C.R.R. § 130-1.1a: <u>/s/ Monica G. Christie</u> Monica G. Christie, Esq.
Due and timely service is hereby admitted. New York, N.Y., 2024. Esq. Attorney for.....

At ^{1a Term}IAS Part 1 of the Supreme Court
held in the County of Cortland, at the
Cortland Courthouse thereof, on the 2nd
day of August, 2024.

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Truist Bank, successor by merger to SunTrust
Bank,

Plaintiff,

vs.

Nicolas E. Creeden a/k/a Nicholas E. Creeden,
Defendants.

INDEX NO.: EF23-492

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
5252 East Homer Crossing
Cortland, NY 13045

a/k/a

5252 East Homer Crossing Road
Cortland, NY 13045

Section: 58.00 Block: 02 Lot: 02.000

Servicer: Truist Bank

Servicer's Phone Number: 800-443-1032

UPON the Summons, Complaint, and Notice of Pendency filed in this action on September 11, 2023, the subsequent Notice of Lis Pendens filed on April 24, 2024, the Notice of Motion dated June 26, 2024, the affirmation by Veronica M. Rundle, Esq., ^{1 dated June 26, 2024, 1} the affidavit of Terry King who is an AVP of Truist Bank, successor by merger to SunTrust Bank, servicer and Plaintiff, duly sworn to on February 2, 2024, together with the exhibits annexed thereto, all in support of Plaintiff's motion for an Order Confirming Referee Report and Judgment of Foreclosure and Sale; and

UPON proof that ~~each~~ of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since



2024-03569
08/29/2024 09:36:52 AM

COURT & TRUST
Brooke Kemak, County Clerk

22-13666NY

Defendant, Nicolas E. Creeden a/k/a Nicholas E. Creeden, was so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against the defendant is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendant Nicolas E. Creeden a/k/a Nicholas E. Creeden is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Dante Armideo, Esq., dated May 1, 2024, showing the sum of \$91,675.00 due as of the date in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Veronica M. Rundle, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse ^{pursuant to the Terms of Sale and *}; by and under the direction of Dante Armideo, Esq.; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

* Foreclosure Auction Plan attached as Exhibit A

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute ^(a Memorandum) Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the

MG

successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder

MGM ~~fails to execute the Terms of Sale~~ ^(Memorandum of) immediately following the bidding upon the subject property or

fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an ~~Joint~~ or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all

taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TOLA or escrow account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$91,675.00 with interest at the note rate as of

January 5, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$2,770.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: ¹⁴⁰¹~~\$300.00~~ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount

bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Nicolas E. Creeden a/k/a Nicholas E. Creeden in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or

any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain

the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale,
he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 5252 East Homer Crossing Road, Cortland, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule~~ ^{MGM}

~~A.~~

DATE: August 23, 2024
Cortland, New York

ENTER:

MGM
Hon. MARK G. MASLER, J.S.C.

Tammy L. Barriger
Tammy L. Barriger-Deputy Clerk



CJ-2024-01763
08/29/2024 09:36:52 AM

JUDGMENT OF FORECLOSURE AND SA
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

~~The real property described in the judgment will be sold by the Referee upon the~~
following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At 1st Term of the Supreme Court of the State of
New York, held in and for the County of
CORTLAND at the Courthouse thereof, 46
Greenbush, Suite 301, Cortland, NY 13045 on the
21st day of August, 2024.

P R E S E N T: Honorable Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
HSBC BANK USA, NATIONAL
ASSOCIATION, AS TRUSTEE FOR WELLS
FARGO HOME MORTGATGE ASSET-
BACKED SECURITIES 2007-M14 TRUST,
MORTGAGE ASSET-BACKED
CERTIFICATES,

Plaintiff(s),

vs.

JUSTIN G. NAYLOR; BARBARA S. NAYLOR,

"JOHN DOE #1" through "JOHN DOE #12," the
last twelve names being fictitious and unknown to
plaintiff, the persons or parties intended being the
tenants, occupants, persons or corporations, if any,
having or claiming an interest in or lien upon the
premises described in the complaint,

Defendant(s).
-----X

INDEX NO.: EF23-019

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY: 3897
HIGHLAND ROAD CORTLAND, NY
13045

COUNTY: CORTLAND

SBL#: Section 85.19, Block 01, Lot
05.000

Servicer: Specialized Loan Servicing
LLC

Servicer Telephone: (800) 306-6059

UPON the Summons, Complaint and Notice of Pendency filed in this action on January
13, 2023, the Notice of Motion dated July 11, 2024, the affirmation of Matthew Rothstein, Esq. dated July 11, 2024 **MGM**
the affidavit of merit and amount due by STEVEN B. ROSS who is SECOND ASSISTANT VICE
PRESIDENT of SPECIALIZED LOAN SERVICING LLC, duly sworn to on February 08, 2024;

22-074517 - DaR



2024-03570

08/29/2024 09:44:53 AM

COURT & TRUST
Brooke Kernak, County Clerk

together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants JUSTIN G. NAYLOR and BARBARA S. NAYLOR were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants JUSTIN G. NAYLOR and BARBARA S. NAYLOR are not absent, in accordance with RPAPL §1321(2);

AND the court having held a mandatory settlement conference in this action pursuant to CPLR §3408.

A settlement was not reached and the case was released from the settlement conference part on December 18, 2023.

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Edward W. Goehler, Esq., dated June 13, 2024,
showing the sum of \$135,048.12 due as of February 04, 2024 and that the mortgaged property
cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and
upon all of the prior proceedings and papers filed herein; and

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is,
hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the
Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to

discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by
the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction

at the Cortland County Courthouse by and under the
direction of Edward W. Goehler, Esq., 11 Groton Avenue, Cortland, NY 13045, (607) 758-8080,
EDWARDGOEHLERLAW@GMAIL.COM, who is hereby appointed Referee for that purpose;

that said Referee give public notice of the time and place of sale in accordance with RPAPL §231
in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"),

and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

MEM ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute ^(Memorandum) Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the ^(Memorandum) Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDLA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TOLA or escrow (account), and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

NGM FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed unless the property sells for \$50,000 or more, in the sum of \$ 250 in the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$135,048.12 with interest at the note rate from February 04, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 1,900 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 4,950 is hereby awarded to the
Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the
date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the
officer conducting the sale within five days after receipt in accordance with RPAPL
§1354(4) and in accordance with local County rules regarding Surplus Monies; and
it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the
property, or in the event that the rights of the purchasers at such sale and the terms of sale under
this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof
is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire
amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds
of the property sold upon the payment to said Referee of the amounts specified in items marked
"First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts
specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid,
after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as
specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the
bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with
paragraph "Fifth" above; and it is further

~~ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further~~

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing

of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED, that Defendants captioned as "JOHN DOE #1" through "JOHN DOE #12", not having been served with copies of the Summons and Complaint, are neither necessary nor proper party defendants and their names are hereby stricken from the caption of this action; and it is further

ORDERED ADJUDGED AND DECREED that the caption shall be amended to reflect the removal said parties as follows:

ORDERED, that the caption shall read as follows:

-----X
HSBC BANK USA, NATIONAL ASSOCIATION,
AS TRUSTEE FOR WELLS FARGO HOME

INDEX NO. EF23-019

22-074517 - DaR

MORTGATGE-ASSET-BACKED SECURITIES
2007-M14 TRUST, MORTGAGE ASSET-BACKED
CERTIFICATES,

Plaintiff,

vs.

JUSTIN G. NAYLOR; BARBARA S. NAYLOR,

Defendant(s).

X

; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

22-074517 - DaR

Said property is commonly known as 3897 HIGHLAND ROAD, CORTLAND, NY 13045.

~~MGM The legal description of the mortgaged property referred to herein is annexed hereto as~~

~~Schedule "A".~~

DATED: August 23, 2024
Cortland, New York

ENTER:

MGM

Hon. MARK G. MASLOV
J.S.C.

Tammy L. Barriger
Tammy L. Barriger - Deputy Clerk



CJ-2024-01764

08/29/2024 09:44:53 AM

JUDGMENT OF FORECLOSURE AND SA
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

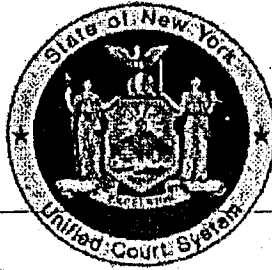
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ^{a Term} ~~Part~~ of the Supreme Court held in
the County of Cortland, ~~at~~ the
Courthouse thereof, on the 31st
day of August, 2024.

PRESENT: Hon. Eugene D. Faughnan, Justice

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

JOHN LEE PAULSON,

Plaintiff(s),

v.

GENELLE DARLING, TOWN OF
CORTLANDVILLE, SECOND ROUND SUB,
LLC, LVNV FUNDING LLC,

Defendant(s).

INDEX NO.: EF23-503

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:

7 Hicks Hill Road
McGraw, NY 13101
SBL #: 88.14-01-06.000

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the
15th day of September, 2023, the Notice of Motion dated May 30, 2024, the affirmation by
Samuel M. Blakley, Esq. dated May 30, 2024, the affirmation in support of attorney's fees
dated May 30, 2024, together with the exhibits annexed thereto, all in support of Plaintiff's
motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein have been duly served with the Summons
and Complaint, and have not served any answer to the Complaint or otherwise appeared, nor has
their time to do so extended; and it appearing that more than the legally required number of days
has elapsed since Defendant Genelle Darling was so served and/or appeared; and Plaintiff having
established to the Court's satisfaction that a judgment against defendant is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3); and

RECEIVED
05/30/2024


2024-03445
08/20/2024 04:25:13 PM
10 Pages
COURT & TRUST
Brooke Kemak, County Clerk

UPON proof that non-appearing defendants Genelle Darling, Town of Cortlandville, Second Round Sub, LLC and LVNV Funding LLC are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Elisabeth Barker, Esq. dated May 1, 2024, showing the sum of \$27,325.19 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Samuel M. Blakley, Esq., attorney for the Plaintiff, it is hereby **ORDERED, ADJUDGED, AND DECREED** that the motion is granted; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED, AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, in accordance with the Terms of Sale and Foreclosure Auction Plan annexed hereto, at a public auction at the **Cortland County Courthouse located at 46 Greenbush Street, Cortland, New York 13045** by and under the direction of

Elisabeth Barker, Esq. of 120 East Washington Street, Syracuse, New York 13202, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the **Cortland Standard**; and it is further

ORDERED, ADJUDGED, AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee

shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in her IOLA account (name of depository) in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED, AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in her IOLA account (name of depository), and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more [~~OR~~ *in the event a sale was cancelled or postponed*, Plaintiff shall compensate the Referee in the sum of \$ 250.00 for each adjournment or cancellation, unless the Referee caused the delay];

SECOND: All taxes, assessments, and water rates that are liens upon the

property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$27,325.19 with interest at the note rate of 0%, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,176.00 adjudged to

the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 6,894.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance

of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED, AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against **Defendant Genelle Darling** in accordance with RPAPL §1371 only if permitted by law; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED, AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED, AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED, AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED, AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED, AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED, AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been

transferred and the deed duly recorded; and it is further

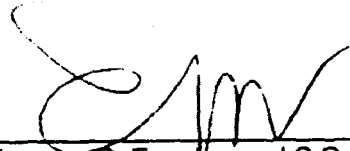
ORDERED, ADJUDGED, AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

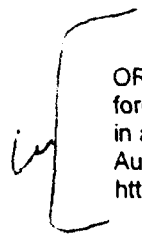
ORDERED, ADJUDGED, AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 7 Hicks Hill Road in the Village of McGraw, Town of Cortlandville, County of Cortland, State of New York, Tax Map No. 88.14-01-06.000.

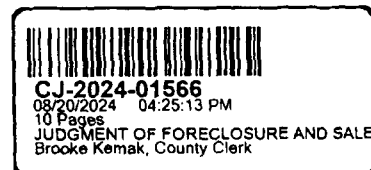
ENTER:

DATED: August 8, 2024


Eugene, D. Faughnan, J.S.C.

 ORDERED, ADJUDGED and DECREED that the foreclosure auction shall be scheduled and conducted in accordance with the Sixth Judicial District Foreclosure Auction Plan, a copy of which can be found at <http://ww2.nycourts.gov/foreclosure-information-31001>.





At a term of the Supreme Court held in and
for the County of Cortland, at the Courthouse
thereof, on the 9th day of August, 2024.

PRESENT: HON. MARK G. MASLER
Justice Presiding.

STATE OF NEW-YORK
SUPREME COURT: COUNTY OF CORTLAND

FIRST NATIONAL BANK OF DRYDEN,

Plaintiff(s),

v

**JEFFERY M. CZIMMER and
MARITIKA R. PEOLA,**

Defendant(s).

**JUDGMENT
OF FORECLOSURE
AND SALE**

Index No.: EF23-680

MORTGAGED PROPERTY:
3 East Main Street
Cortland, New York 13045

Section: 86.42
Block: 02
Lot: 02.000

Mortgage Servicer:
First National Bank of Dryden

Phone #: 607-844-8141

ON the Summons, Verified Complaint and Notice of Pendency duly filed in the Cortland County Clerk's Office on December 8, 2023 and additional Notice of Pendency filed on July 8, 2024, and all proceedings thereon; and on reading and filing the Notice of Motion dated July 22, 2024, the Affidavit of William J. Pomeroy duly sworn to on July 22, 2024, with Exhibits 1-4 thereto, showing that defendant Jeffery M. Czimmer was served in accordance with the order of the court dated January 16, 2024, and stating that more than the legally required number of days have elapsed since said defendant was so served, and that Jeffery M. Czimmer has defaulted in pleading by failing to serve an answer to said Complaint, nor has his time to do so been extended;



and upon the answer of defendant Maritiki A. Peola having been dismissed with prejudice by decision and order entered May 29, 2024; and upon the affidavit of Donna M. Jackson, plaintiff's

Vice President and Compliance Officer, sworn to July 11, 2024, showing the amount due and that defendants have not cured the default by paying the amounts due; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (i); and

UPON proof whether any non-appearing defendants are absent, in accordance with RPAPL § 1321 (2); and

A REFEREE having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the report of James Baranello, Esq., dated July 17, 2024, showing the sum of \$88,321.21 was due as of July 15, 2024, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Pomeroy, Armstrong & Casullo, LLP, attorneys for plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the

date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of James Baranello, Esq., 39 Church Street, Cortland, New York 13045, (607) 758-8200, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in

paragraph (a) of subdivision 1 of section 6-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other

amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$88,321.21 with interest at the note rate from July 15, 2024 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$1,880 as taxed by the Clerk for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$10,307.50 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 3 East Main Street, Cortland, New York 13045.

Dated: August 23, 2024
Cortland, New York

ENTER

MGM

HON. MARK G. MASLER
Supreme Court Justice

Tammy L. Barriger
Tammy L. Barriger-Deputy Clerk

- 9 -



CJ-2024-01766
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

~~The real property described in the judgment will be sold by the Referee upon the~~
following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

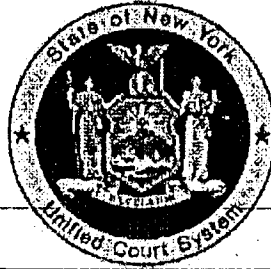
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

1st Term
At Part 1 of the Supreme Court held in
and for the County of Cortland, at the
courthouse located at 46 Greenbush Street,
Cortland, NY, on the 19th day of
July, 2024.

PRESENT: Hon. Mark G. Masler
JUSTICE OF THE SUPREME COURT

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

WELLS FARGO BANK, N.A.,

Plaintiff,

v.

GEORGE DINSTBER AS HEIR AT LAW AND
NEXT OF KIN OF DONNA R. NOVICK, JAMES
NOVICK, UNITED STATES OF AMERICA BY THE
INTERNAL REVENUE SERVICE, NEW YORK
STATE DEPARTMENT OF TAXATION AND
FINANCE,

Defendants.

INDEX NO.: EF23-366

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF FORECLOSURE
AND SALE

MORTGAGED PROPERTY:
2798 Cincinnatus Road
Cincinnatus, NY 13040

SBL No.: 123.05-01-31.000
Mortgage Servicer: Wells Fargo
Home Equity

Telephone Number: 1-877-617-5274

UPON the Summons, Complaint, and Notice of Pendency filed in this action on June 30, 2023 and a Supplemental Notice of Pendency filed on March 12, 2024 the Notice of Motion dated June 7, 2024, the affirmation of Duncan M. Eigg, Esq. dated June 7, 2024, the Affidavit of Merit and Amounts Due and Owing of Aldo Ramirez who is Vice President Loan Documentation of Wells Fargo Bank, N.A., duly sworn to on January 31, 2024, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants GEORGE DINSTBER AS HEIR AT LAW AND

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366



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COURT & TRUST
Brooke Kemak, County Clerk

NEXT OF KIN OF DONNA R. NOVICK, JAMES NOVICK, UNITED STATES OF AMERICA
BY THE INTERNAL REVENUE SERVICE, NEW YORK STATE DEPARTMENT OF
TAXATION AND FINANCE were so served; and Plaintiff having established to the court's
satisfaction that a judgment against Defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants GEORGE DINSTBER AS HEIR AT LAW
AND NEXT OF KIN OF DONNA R. NOVICK, JAMES NOVICK, UNITED STATES OF
AMERICA BY THE INTERNAL REVENUE SERVICE, NEW YORK STATE DEPARTMENT
OF TAXATION AND FINANCE are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed by Order dated May 10, 2024 to compute the amount due
to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether
the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of William J. Pomeroy, Esq. dated May 20, 2024,
showing the sum of \$42,585.79 due as of January 30, 2024 and that the mortgaged property may
not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and
upon all the prior proceedings and papers filed herein;

NOW, on motion by Woods Oviatt Gilman LLP, attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is,
hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the
Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the
mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be
sold, within 90 days of the date of this Judgment, in one parcel, at a public auction^{*} at the Cortland
County Courthouse, 46 Greenbush Street, Cortland by and under the direction of William J.
Pomeroy, Esq., 16 Tompkins Street, PO Box 828, Cortland, NY 13045, 607-756-7501 who is
hereby appointed Referee for that purpose; that said Referee give public notice of the time and
place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is
further

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

** pursuant to the Terms of Sale and Foreclosure Auction
plan attached as Exhibit A*

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid from Plaintiff, its successors and/or assignee, or its representative; and it is further

MGM ~~ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his/her IOLA account in accordance with CPLR 2609; and it is further his/her IOLA account~~

ORDERED, ADJUDGED and DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute the Memorandum of Sale for the purchase of the property, in the form attached hereto and incorporated herein, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED and DECREED that in the event the first successful bidder fails to execute the Memorandum of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall deposit the down payment and proceeds of sale, as necessary, in the Referee's IOLA account, in accordance with CPLR §2609; and it is further

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

MGM
~~ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid from Plaintiff, its successors and/or assigns, or its representative; and it is further~~

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty⁷ (30) days after such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) or subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that said Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in the Referee's IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

accordance with CPLR 8003(b), not to exceed \$750.00 in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation without a 24 hour notice, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$42,585.79 with interest at the note rate from January 31, 2024 until judgment entry date, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 1,195 hereby adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

Additional Advances: The amount of any advances which plaintiff may make for taxes, insurance premiums or other advances necessary to preserve or maintain the premises pending the consummation of this foreclosure sale, whether such advances were made prior to or after entry of judgment, so long as such advances were not included in the Referee's Report of Amount Due and are documented by receipts provided to the Referee, all together with interest thereon pursuant to the note and mortgage;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at said sale shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its/her/his assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, ^{and that any transfer tax shall be paid in accordance with Tax Law § 1404} shall be paid by the purchaser, not by the Referee from sale proceeds; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff has established standing in this action; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

~~ORDERED, that the "New Auction Rules for the Judicial District" annexed to this Judgment shall be incorporated into the Terms of Sale for auctions held during the COVID-19 health emergency.~~

Said property is commonly known as 2798 Cincinnatus Road, Cincinnatus, NY 13040.

~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A, together with the terms of Sale.~~

ENTER:

DATED: August 23, 2024
Cortland, New York

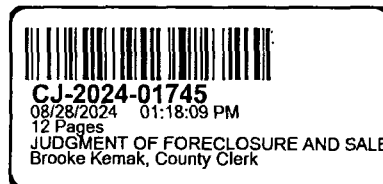
MGML

HON. Mark G. Masler, J.S.C.

106028-1

Wells Fargo Bank, N.A. v. Donna R. Novick, et al.
Cortland County Supreme Court, Index #: EF23-366

Marcia L. Yerd - Deputy



**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tlogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmljackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ^{1st Term} ~~IAS Part~~ of the Supreme Court
held in the County of Cortland, at the
Cortland Courthouse thereof, on the 28th
day of Aug., 2024.

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Truist Bank, successor by merger to SunTrust Bank, Plaintiff, vs. Nicholas G M Stone a/k/a Nicholas G.M. Stone a/k/a Nicholas G. Stone; New York State Affordable Housing Corporation, Defendants.	INDEX NO.: EF23-208 <u>ORDER CONFIRMING REFEREE REPORT AND JUDGMENT OF FORECLOSURE AND SALE</u> MORTGAGED PROPERTY: 2 Woodland Avenue Cortland, NY 13045 Section: 86.47 Block: 03 Lot: 15.000 Servicer: Truist Bank Servicer's Phone Number: 800-827-3722
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UPON the Summons, Complaint, and Notice of Pendency filed in this action on April 12, 2023, the Notice of Motion dated July 31, 2024, the affirmation by Veronica M. Rundle, Esq., ^{dated July 31, 2024/} *MGM*
the affidavit of Joseph Lane who is Assistant Vice President of Truist Bank, successor by merger to SunTrust Bank, Plaintiff, duly sworn to on December 18, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for an Order Confirming Referee Report and Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants, Nicholas G M Stone AKA Nicholas G.M. Stone AKA Nicholas G. Stone and New York State Affordable Housing Corporation, were so served and/or appeared; and Plaintiff



2024-03550
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COURT & TRUST
Brooke Kemak, County Clerk

23-14150NY

having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendant, Nicholas G M Stone AKA Nicholas G.M. Stone AKA Nicholas G. Stone is not absent, in accordance with RPAPL §1321(2); and

UPON the Notice of Appearance dated May 22, 2023, filed by Michele M. Walls, Esq., on behalf of Defendant, New York State Affordable Housing Corporation; and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Donald C. Armstrong, Esq., dated May 17, 2024, showing the sum of \$79,836.71 due as of the date in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein; *and there being no opposition to the ruling* MGM

NOW, on motion by Veronica M. Rundle, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse; by and under the direction of Donald

[pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A]

** and no appearance by defendant on return of the motion.*

C. Armstrong, Esq.; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

MEM ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and ^{Memorandum} Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the

MGM ^(Memorandum)
successful bidder immediately execute ~~Terms~~ of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

MGM ^(Memorandum)
ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the ~~Terms~~ of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDLA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation,

or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said IOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such

penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the

bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$79,836.71 with interest at the note rate as of January 1, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$2,390.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$300.00 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees

herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer

conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies;

and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay

Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Nicholas G M Stone in accordance

with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in

one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court,

the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules

regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said

sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2 Woodland Avenue, Cortland, NY 13045.

MG The legal description of the mortgaged property referred to herein is annexed hereto as Schedule

A.

DATED:

August 28, 2024
Cortland, New York

ENTER:

MG

Hon. MARK G. MASLER
Supreme Court Justice

Marcia L. Ford - Deputy



CJ-2024-01751
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

23-14150NY

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At ^{1st Term} ~~IAS Part~~ of the Supreme Court
held in the County of Cortland, at the
Cortland Courthouse thereof, on the 28th
day of Aug., 2024.

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Truist Bank, successor by merger to SunTrust Bank, Plaintiff, vs. Nicholas G M Stone a/k/a Nicholas G.M. Stone a/k/a Nicholas G. Stone; New York State Affordable Housing Corporation, Defendants.	INDEX NO.: EF23-208 <u>ORDER CONFIRMING REFEREE REPORT AND JUDGMENT OF FORECLOSURE AND SALE</u> MORTGAGED PROPERTY: 2 Woodland Avenue Cortland, NY 13045 Section: 86.47 Block: 03 Lot: 15.000 Servicer: Truist Bank Servicer's Phone Number: 800-827-3722
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UPON the Summons, Complaint, and Notice of Pendency filed in this action on April 12, 2023, the Notice of Motion dated July 31, 2024, the affirmation by Veronica M. Rundle, Esq., ^{dated July 31, 2024} *MGM*, the affidavit of Joseph Lane who is Assistant Vice President of Truist Bank, successor by merger to SunTrust Bank, Plaintiff, duly sworn to on December 18, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for an Order Confirming Referee Report and Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants, Nicholas G M Stone AKA Nicholas G.M. Stone AKA Nicholas G. Stone and New York State Affordable Housing Corporation, were so served and/or appeared; and Plaintiff



23-14150NY

having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendant, Nicholas G M Stone AKA Nicholas G.M. Stone AKA Nicholas G. Stone is not absent, in accordance with RPAPL §1321(2); and

UPON the Notice of Appearance dated May 22, 2023, filed by Michele M. Walls, Esq., on behalf of Defendant, New York State Affordable Housing Corporation; and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Donald C. Armstrong, Esq., dated May 17, 2024, showing the sum of \$79,836.71 due as of the date in said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein; *and there being no opposition to the motion* MGM

NOW, on motion by Veronica M. Rundle, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and ~~as hereafter described~~, or such part thereof as may be sufficient to discharge

MGM the mortgage debt, the expenses of the sale, and the costs of this action as provided by the pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse; by and under the direction of Donald

MGM * and no appearance by defendant on return of the motion.

C. Armstrong, Esq.; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and ^(Memorandum) ~~Terms~~ of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute ^(Memorandum) Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the ^(Memorandum) Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDLA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation,

or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such

penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the

bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$79,836.71 with interest at the note rate as of January 1, 2024, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$2,390.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

MGM
Additional Allowance: ¹⁴⁰¹~~\$300.00~~ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees

herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer

conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies;

and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Nicholas G M Stone in accordance

with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules

regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 2 Woodland Avenue, Cortland, NY 13045.

~~MGM The legal description of the mortgaged property referred to herein is annexed hereto as Schedule~~

~~A~~

DATED:

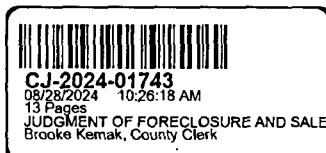
August 28, 2024
Cortland, New York

ENTER:

MGM

Hon. MARK G. MASLER
Supreme Court Justice

Marcia L. Ford - Deputy



23-14150NY

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

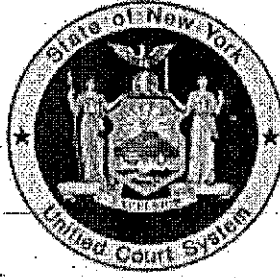
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an I.A.S. Term, part _____ of
the Supreme Court of the County of
Cortland held in the Cortland Supreme
Court in the city of Cortland, New York on
the 23rd day of August,
20 24.

PRESENT: HON. HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
U.S. BANK TRUST NATIONAL
ASSOCIATION, NOT IN ITS INDIVIDUAL
CAPACITY BUT SOLELY AS OWNER
TRUSTEE FOR RCF 2 ACQUISITION TRUST
C/O U.S. BANK TRUST NATIONAL
ASSOCIATION

Plaintiff

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

INDEX #: EF23-163

vs

JOSEPH M. MYDLENSKI AKA JOSEPH
MYDLENSKI, STACIE J. MYDLENSKI AKA
STACIE MYDLENSKI

Defendant(s)

MORTGAGED PREMISES:
6343 Route 281
Preble, NY 13141

Mortgage Servicer:
Selene Finance LP
Mortgage Servicer Phone Number:
(877) 735-3637

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on March
22, 2023, the Notice of Motion dated July 11, 2024 and the affirmation by Natasha S Prasad,
MsM dated July 11, 2024,
Esq. the affidavit of merit and amount due by Debbie Benzley who is Document Execution
Specialist of Selene Finance LP, duly sworn to Korey McGovern on July 10, 2023, together with
the Exhibits annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure
and Sale; and

UPON proof that each of the Defendants herein has been duly served with the Summons



2024-03571
08/29/2024 09:57:32 AM

COURT & TRUST
Brooke Kemak, County Clerk

and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Joseph M. Mydlenski AKA Joseph Mydlenski and Stacie J. Mydlenski AKA Stacie Mydlenski who have not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and

UPON the Affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendants Joseph M. Mydlenski AKA Joseph Mydlenski and Stacie J. Mydlenski AKA Stacie Mydlenski are not absentee, in accordance with RPAPL § 1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Deborah W. Miller, Esq. dated May 06, 2024, showing the sum of \$116,766.18, due as of July 23, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Natasha S Prasad, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in

the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge

the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL

be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Main pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A

~~Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the~~

extent possible, at _____ AM/PM, by and under the direction of Deborah W.

Miller, Esq., P.O. Box 538, Ithaca, NY 14851, 607-277-0272 who is appointed Referee for that

purpose; that said Referee give public notice of the time and place of sale in accordance with

RPAPL § 231 ⁱⁿ ~~in~~ ^{the} ~~Cortland Standard Newspaper~~; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and ^(Memorandum) ~~Terms of Sale~~ from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to

the time fixed by RPAPL § 1351(1) is extended

conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall
accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were
physically present to submit said bid; and it is further

MGH ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid
offered by a bidder who shall be identified upon the Court record, and shall require that the
successful bidder immediately execute ~~Terms of Sale~~ ^(Memorandum) for the purchase of the property, and pay to
the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the
successful bidder is Plaintiff in which case no deposit against the purchase process shall be
required; and it is further

MGH ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder
fails to execute the ~~Terms of Sale~~ ^(Memorandum) immediately following the bidding upon the subject property
or fails to immediately pay then percent (10%) deposit as required, the property shall
immediately and on the same day be reoffered at auction; and it is further

MGH ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down
payment and proceeds of sale, as necessary, in an IDLA or escrow ^(account in her name) as Referee, in
accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee
shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale,
which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the
Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days
after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in said TOLA or escrow account and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and

any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$116,766.18 with interest at the Note rate from July 24, 2023 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. \$2,184.29 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

\$2,185, as taxed by the clerk,

MGM

1801

Additional Allowance. ~~\$50.00~~ is hereby awarded to Plaintiff in addition to costs, **AGM**

with interest at the statutory judgment rate from the date of entry of this judgment,

pursuant to CPLR Article 83;

Attorney Fees. \$5,650.00 is hereby awarded to Plaintiff as reasonable

legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of

sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Joseph M. Mydlenski AKA Joseph Mydlenski and Stacie J. Mydlenski AKA Stacie Mydlenski in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR 317, 2003 and 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all

persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff

shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable judicial district foreclosure auction plan and rules in effect at the time of the auction; and it is further

MGM
~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~

ENTER,

Dated:

August 23, 2024
Cortland, New York

Cortland, New York

MGM
HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Tammy L. Barriger
Tammy L. Barriger-Deputy Clerk



CJ-2024-01765
08/29/2024 09:57:32 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions, and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

1st Term
At ~~Part~~ of the Supreme Court of the State
of New York held in the County of Cortland
at the Courthouse thereof, on the 24th day
of May, 2024.

PRESENT: HONORABLE MARK G MASLER
JUSTICE OF THE SUPREME COURT

----- X
U.S. BANK NATIONAL ASSOCIATION, AS
TRUSTEE, AS SUCCESSOR TO FIRSTSTAR TRUST
COMPANY, AS TRUSTEE, FOR MANUFACTURED
HOUSING CONTRACT SENIOR/SUBORDINATE
PASS-THROUGH CERTIFICATE TRUST 1996-9,

INDEX NO.: EF20-828

Plaintiff(s),

v.

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

VICKI HENRY AS HEIR TO THE ESTATE OF VIVIAN
M. HENRY; TRAMPAS HENRY AS HEIR TO THE
ESTATE OF VIVIAN M. HENRY; UNITED STATES
OF AMERICA; NEW YORK STATE DEPARTMENT
OF TAXATION AND FINANCE; TARGET
NATIONAL BANK; NEW YORK STATE
DEPARTMENT OF MOTOR VEHICLES; MIDLAND
FUNDING LLC; CREDIT ACCEPTANCE
CORPORATION; PORTFOLIO RECOVERY
ASSOCIATES LLC; AND CORTLAND MEMORIAL
HOSPITAL,

MORTGAGED PROPERTY:
3522 Route 11
McGraw a/k/a Cortlandville, NY 13101
(VACANT PROPERTY)

COUNTY: Cortland

SBL #:98.00-01-46.200

Mortgage Servicer:
Shellpoint Mortgage Servicing

Mortgage Servicer Phone #:
800-365-7107

Defendant(s).

----- X
UPON the Summons, Complaint, and Notice of Pendency filed in this action on December
10, 2020, the Supplemental Summons, Amended Complaint, and Amended Notice of Pendency
filed in this action on July 7, 2023, the Notice of Motion dated April 30, 2024, the affirmation by
MGM George J. Weissinger, Esq., (dated April 30, 2024;) the affidavit of merit and amount due by Roni Neumann who is
Document Verification Specialist of NewRez, LLC fka New Penn Financial, LLC D/B/A



2024-02637

06/27/2024 08:30:49 AM

COURT & TRUST
Brooke Kemak, County Clerk

Shellpoint Mortgage Servicing, duly sworn to on November 16, 2023, together with the exhibits annexed thereto, all in support of Plaintiffs motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and the ~~remaining~~ defendants have not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants VICKI HENRY AS HEIR TO THE ESTATE OF VIVIAN M. HENRY; TRAMPAS HENRY AS HEIR TO THE ESTATE OF VIVIAN M. HENRY; UNITED STATES OF AMERICA; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE; TARGET NATIONAL BANK; NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES; MIDLAND FUNDING LLC; CREDIT ACCEPTANCE CORPORATION; PORTFOLIO RECOVERY ASSOCIATES LLC; CORTLAND MEMORIAL HOSPITAL were so served; and

UPON the affidavit of mailing reflecting the compliance with CPLR 3215(g)(3)(²¹~~15~~); and MGM

UPON proof that non-appearing VICKI HENRY AS HEIR TO THE ESTATE OF VIVIAN M. HENRY; TRAMPAS HENRY AS HEIR TO THE ESTATE OF VIVIAN M. HENRY; UNITED STATES OF AMERICA; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE; TARGET NATIONAL BANK; NEW YORK STATE DEPARTMENT OF MOTOR VEHICLES; MIDLAND FUNDING LLC; CREDIT ACCEPTANCE CORPORATION; PORTFOLIO RECOVERY ASSOCIATES LLC; CORTLAND MEMORIAL HOSPITAL are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of James J. Baranello, Esq. dated March 11, 2024 showing the sum of \$49,818.20 due as of November 30, 2023 and that the mortgaged property should be sold in one parcel; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Pincus Law Group, PLLC, attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse pursuant to the Terms of Sale and Foreclosure Auction Plan annexed hereto as Exhibit A by and under the direction of James J. Baranello, Esq. 39 Church St., Cortland, NY 13045, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in

The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is

disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder

fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or SOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-L of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TOLA or escrow account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750 unless the property ^{MGM} sells for \$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale.

The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$49,818.20 with interest at the note rate from November 30, 2023 until the Judgment is entered, together with any

advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,225 adjudged to the Plaintiff for costs and disbursements in this action (~~add if applicable, as taxed or calculated by the~~ *MGM* ~~Clerk and inserted herein~~), with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof

is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the

property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale,

he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED and DECREED that the supplemental summons and amended ^{larel} complaint ~~is~~ deemed filed timely nunc pro tunc; and it is further

ORDERED, ADJUDGED and DECREED that the manufactured home affixed to the subject property described as VIN# 19977251951AB, Year: 1997, Make: TITAN and Model: RIVERBIRCH is to be sold along with the property located at 3522 Route 11, McGraw a/k/a Cortlandville, NY 13101 and that upon providing a copy of the Referee's Deed, the New York State Department of Motor Vehicles is directed to issue a Certificate of Title in favor of the grantee on said Deed, if necessary; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 3522 Route 11, McGraw a/k/a Cortlandville, NY 13101, along with a manufactured home which is permanently attached to the property and is considered a fixture, and it is further described as:

VIN# or Serial #: 19977251951AB
Year: 1997
Make: TITAN
Model: RIVERBIRCH

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ MGM
~~Schedule A. See Attached Terms of Sale.~~

ENTER:

DATED: June 24, 2024
Cortland, New York

MGM
Hon. Mark G Masler
J.S.C.

Brooke Kemak



CJ-2024-01177

06/27/2024 08:30:49 AM

JUDGMENT OF FORECLOSURE AND SA
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part 1a Term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 17th day of
May, 2024.

PRESENT: Hon. Hon. Mark G Masler
JUSTICE OF THE SUPREME COURT

CFCU Community Credit Union,

Plaintiff(s),

v.

John-Luke Henriquez a/k/a Joelle Amethyst Rose f/k/a
John-Luke Henriquez; Jennifer Henriquez,

Defendant(s).

INDEX NO. EF22-554

ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
9 East Main Street
McGraw, NY 13101

SBL #: Section 88.15 Block 02
Lot 36.000

Mortgage Servicer:

Mortgage Servicer Phone #:

NGM
UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 22nd
day of December, 2022, on the Additional Notice of Pendency filed on the 18th day of
September, 2023, the Notice of Motion dated April 16, 2024, the affirmation by Barbara
Dunleavy, Esq., dated April 16, 2024, with exhibits thereto, the affidavit of merit and amount due by Amber Parker, who is Asset Recovery
Manager, duly sworn to on October 26, 2023, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendants, John-Luke Henriquez a/k/a Joelle



2024-02110
05/20/2024 04:25:32 PM

COURT & TRUST
Brooke Kemak, County Clerk

Amethyst Rose f/k/a John-Luke Henriquez and Jennifer Henriquez, were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(ii); and *Mer*

UPON proof that non-appearing defendants, John-Luke Henriquez a/k/a Joelle Amethyst Rose f/k/a John-Luke Henriquez, and Jennifer Henriquez, are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Natalie B Miner Esq dated March 27, 2024, showing the sum of \$143,995.74 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the

pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto

RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of Natalie B Miner, Esq, 25 S. Main Street, PO BOX 310, Homer, NY 13077, 607-749-7296 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the *Cortland Standard*; and it is further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes,

assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$143,995.74 with interest at the note rate from October 1, 2023 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$3,789.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$2,900.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the

time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against John-Luke Henriquez, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of
sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is
further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith,
Plaintiff shall file a written report with the court within six months from the date of entry of this
judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 9 East Main Street, McGraw, NY 13101.

The legal description of the mortgaged property referred to herein is annexed hereto as *MGM*

~~Schedule A.~~

ENTER

DATED: *May 20, 2024*
Concord, New York

MGM
Hon. Mark G Masler, J.S.C.
Justice of the Supreme Court

Tammy L. Barriger
Tammy L. Barriger - Deputy Clerk



CJ-2024-00913
05/20/2024 04:25:32 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.

~~3. The residue of said purchase money will be required to be paid in cash or certified~~
check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.

4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.

5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.

6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

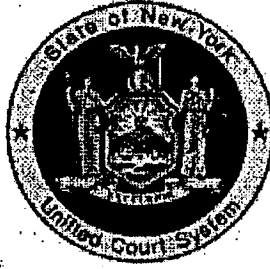
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. ~~All covenants, conditions, easements, agreements restrictions and~~
encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

- ~~1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.~~
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part 1 of the Supreme Court held
in the County of Cortland, at the
Courthouse thereof, on the 21st day
of June, 2024.

PRESENT: Hon. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

NBT BANK, NA,

Plaintiff,

-against-

ZOYA MAYO; DAVID MAYO; AMERICU CREDIT UNION;
NEW YORK STATE DEPARTMENT OF TAXATION AND
FINANCE; JP MORGAN CHASE BANK, N.A.

Defendants.

Index No.: EF23-135

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Assigned Judge:
Mark G. Masler, J.S.C.

Mortgaged Premises:
4428 Raphael Drive
Cortland, NY 13045
SBL: 76.00-06-11.000

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the
13th day of March, 2023, the Notice of Motion dated June 3, 2024, the affirmation of Melissa H.
Pugliese, Esq., dated June 3, 2024,
the affidavit of merit and amount due by Kathy L. Black, who is Assistant Vice
President of NBT Bank, National Association, duly sworn to on June 22, 2023, together with the
exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale;
and

UPON proof that each of defendants herein has been duly served with the Summons and
Complaint in this action, and has voluntarily appeared either personally or by an attorney -OR- has
not served any answer to the Complaint or otherwise appeared, nor had their time to do so
extended; and it appearing that more than the legally required number of days has elapsed since
defendants Zoya Mayo and David Mayo were so served and/or appeared; and Plaintiff having
established to the court's satisfaction that a judgment against defendants is warranted; and



2024-02606

06/25/2024 04:21:41 PM

COURT & TRUST
Brooke Kemak, County Clerk

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(~~ii~~)ⁱⁱ; and

MGM

UPON a referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Liam G.B. Murphy, Esq. dated May 17, 2024, showing the sum of \$812,690.03 due as of the July 7, 2023 ~~date of said Report~~ and that the mortgaged property may not be sold in parcels; and

MGM

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Burgess & Associates P.C. (Melissa H. Pugliese, Esq.), attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the

mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be Pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A sold, within 90 days of the date of this Judgment, in one parcel, at a public auction ^{at} the Cortland

County Courthouse, Cortland ~~Norwich~~, New York, by and under the direction of Liam G.B. Murphy, Esq., 170 Main Street, Groton, New York 13073, (607) 273-2900; who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with

RPAPL §231 in The Cortland Standard; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiffs attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an IDA or escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision I of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said IDLA or escrow account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more -OR- in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$812,690.03 with interest at the note rate from July 7, 2023 until date judgment is entered, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in

the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 2,264.20 adjudged to the Plaintiff for costs and disbursements in this action ~~(add if applicable, as taxed or calculated by the Clerk and inserted herein)~~ ^{MGM}, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 8,024.75 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in Items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after

deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Zoya Mayo in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and It is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and It is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 4428 Raphael Drive, Cortland, New York 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*

~~Schedule A:~~

DATED: June 24 2024
Cortland, New York

ENTER:

MGM
HON. MARK G. MASLER, J.S.C.

Brooke Kemak



CJ-2024-01165

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a Term of the Supreme Court of the State of
New York in and for the County of Cortland at
the Court House, at Cortland, New York, on
May 17, 2024.

Hon. Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
CFCU COMMUNITY CREDIT UNION,

Plaintiff(s),

v.

TYLER G. SMART, DAVID G. BRANG,

Defendant(s).

Index No.: EF23-090

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
0 Hights Gulf Road, Town of
Truxton, County of Cortland, New
York

SBL #: 29.00-02-04.000

Mortgage Servicer:
CFCU Community Credit Union
Mortgage Servicer Phone #:
1-800-428-8340

-----X
ON the summons, verified complaint and notice of pendency duly filed in this action
on February 23, 2023, and on the amended summons and complaint filed in this action
on June 15, 2023, the Notice of Motion dated March 25, 2024, the Affirmation of
NGM Regularity of Samuel M. Blakley, Esq.
Regulation of Samuel M. Blakley, Esq. dated March 25, 2024, the Affirmation in Support
of Attorney's Fees dated March 25, 2024, all in support of Plaintiff's motion for a Judgment
of Foreclosure and Sale; and

UPON proof that each of the defendants herein have been duly served with the
Summons and Complaint and with the Amended Summons and Complaint in this action,
and have not served any answer to the Complaint or otherwise appeared, nor has their



2024-02132

05/22/2024 11:05:40 AM

COURT & TRUST
Brooke Kemak, County Clerk

time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Tyler G. Smart and David G. Brang were so served and/or appeared; and Plaintiff having established to the Court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(ⁱⁱ~~ii~~); and *MGW*

UPON proof that non-appearing Defendants Tyler G. Smart and David G. Brang are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON the order of reference dated December 5, 2023 and entered on or about December 5, 2023, appointing Liam G.B. Murphy, Esq. as Referee in this action to ascertain and compute the amount due, and to examine and report whether the mortgaged premises should be sold in one or more parcels; and

UPON reading and filing the Report of Liam G.B. Murphy, Esq. dated March 6, 2024, showing the sum of \$76,459.22 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Samuel M. Blakley, Esq., attorney for the Plaintiff, it is hereby ORDERD, ADJUDGED AND DECREED that the motion is granted; and it is further ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, in accordance with the Terms of Sale and Foreclosure Auction Plan annexed hereto at a public auction at the Cortland County Courthouse located at 46 Greenbush Street, Cortland, Cortland County, New York, by Liam G.B. Murphy, Esq. of 109 E. Seneca Street, Ithaca, New York 14850, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard (name of authorized publication); and it is further

MGM

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment") and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is

present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary in an IDLA or escrow account ~~(name of depository)~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy; (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in Said SOLA or escrow account (name of depository), and shall thereafter make the

following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more (or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 - for each adjournment or cancellation, unless the Referee caused the delay);

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$76,459.22 with interest at the 1 to the date of entry of this judgment per diem rate of \$9.72 from December 5, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes,

insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,327.20 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a

valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against **Defendant David G. Brang** only, in accordance with RPAPL §1371, if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of

way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall

elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 0 Hights Gulf Road, Town of Truxton, County of Cortland, New York (Tax Map No. 29.00-02-04.000).

MGM ~~The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A.~~

Dated: May 21 2024
Cortland, New York

ENTER,

Brooke Kemak

MGM

Hon. Mark G. Masler, J.S.C.



CJ-2024-00919
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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

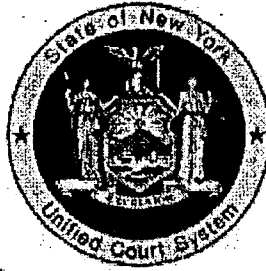
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

SUPREME COURT : STATE OF NEW YORK
COUNTY OF CORTLAND

CELIA ELBRECHT,

Plaintiff,

v.

ANNETTE CONGDON, JOHN DOE
and JANE DOE,

Defendants.

JUDGMENT OF
FORECLOSURE AND SALE

Index No. EF23-482

Property Address:
200 Main Street
Cortland, New York 13045

Upon the Affidavit in Support of Issuance of Judgment of Foreclosure and Sale and in Support of Request for Award of Attorney's Fees of Edward Y. Crossmore, Esq., sworn to on April 26, 2024, from which it appears that all of the defendants were duly and properly served; and upon the Order of Reference having been issued by this court on March 5, 2024, and filed in the office of the Cortland County Clerk on March 15, 2024, directing the referee, James Baranello, Esq., to compute the amount due plaintiff on the debt instrument set forth in the complaint and to examine and report the situation of the mortgaged premises, and to determine whether the mortgaged premises can be sold in parcels without material injury to the parties interested, or if the sale of said mortgage premises as one parcel would be most beneficial to all the interests of all the parties and to report to the court with all convenient speed; and this Court heretofore having read the Referee's Oath, sworn to on April 8, 2024; the Referee's Report of Amount Due dated April 8, 2024; the Affidavit of Leah A. Kelly, attorney-in-fact of the plaintiff, sworn to on April 5, 2024, setting forth the a amount due under the debt instrument sued upon; and the Affidavit of Edward Y. Crossmore, the attorney for the plaintiff, sworn to on April 5, 2024; and it appearing that as of April 4, 2024, the sum of \$109,940.42 was due plaintiff under the debt instrument with


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COURT & TRUST
Brooke Kemak, County Clerk

interest accruing thereafter at the per diem rate of \$9.14 from April 5, 2024; and that the referee having reported to the court that the mortgaged premises should be sold as one parcel; and it further appearing that no defendant is an absentee as that term is used under RPAPL Section 1321; and it further appearing that the debt instrument and mortgage both contain a provision that the obligor/mortgagor will pay the plaintiff's reasonable attorney's fees, and plaintiff's counsel, the Crossmore & Tiffany Law Office, alleges that it has performed \$3,150.00 worth of legal services in connection with this case; and as plaintiff may incur additional counsel fees in this action, plaintiff shall be entitled to make application to the court for such additional fees;

NOW, on motion of the Crossmore & Tiffany Law Office, attorneys for the plaintiffs, and this Court having duly deliberated upon the several matters and things hereinbefore recited; it is

ORDERED, ADJUDGED AND DECREED that the report of the said referee dated April 8, 2024, be and the same hereby is in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged premises described in the Foreclosure Complaint in this action, as hereinafter set forth on EXHIBIT A, be sold as one parcel; that such sale is to be at a public auction held at 46 Greenbush Street, Second Floor, Cortland, New York, by James Baranello, Esq. who is hereby appointed referee for that purpose; should the Referee be unable to conduct the sale at the location due to social distancing or other related restrictions, the sale shall occur outside of the building as close to the main entrance of the building as practicable; the Referee must enforce any requirements currently in effect at the time of sale regarding social distancing, face coverings, and the like, and the Terms of Sale must include these requirements; and that said referee shall give public notice of the time and place of such sale pursuant to Section 231 of the Real Property Actions and Proceedings Law; by advertising in the Cortland Standard, and that such sale shall be according to the

Terms of Sale, a copy of which is annexed hereto as EXHIBIT B; that the plaintiff or any other parties to this action may become the purchaser; that in case the plaintiff shall become the purchaser it shall not be required to make any deposit thereon; that said referee execute to the purchaser on such sale a deed of the real property sold; and it is further

ORDERED, ADJUDGED AND DECREED that the referee shall sell the mortgaged property and the said referee shall then deposit the proceeds of sale in the referee's name as referee in a financial institution of the referee's choice, in the State of New York, and shall thereafter make the following payments and the referee's check drawn for these purposes shall be paid by the said depository:

FIRST. The referee shall pay all taxes, assessments and water rates and sales for same which are at the time of sale a lien on the premises together with such interest or penalties which may have lawfully accrued thereon;

SECOND. The referee shall pay to the referee the statutory fee of said referee upon the sale of the real property, \$750.00 pursuant to CPLR 8003(b), unless the real property shall sell for \$50,000.00 or more, in which event the referee may apply to the court for such additional compensation as to the court may seem proper.

THIRD. The referee shall pay the expenses of the sale and the advertising expenses (or shall reimburse plaintiff for same) as shown on the bills presented.

FOURTH. The referee shall also pay to the plaintiffs the sum of \$1,705.00, adjudged to the plaintiff for costs and disbursements in this action.

FIFTH. The referee shall pay to the plaintiff the said amount so reported due as aforesaid under the mortgage, namely \$109,940.42 with interest upon such amount from April 5, 2024, together with reimbursement for reasonable attorneys' fees in the amount of \$3,150.00 together

with any additional attorney's fees which may be awarded by further order of this court, or so much thereof as the purchase money of the mortgaged premises will pay the same.

If such referee intends to apply for further allowance for fees the referee may leave upon deposit such amount as will cover such additional allowance to await the further order of the Court thereon after application duly made.

That in case the plaintiff be the purchaser of said mortgaged premises at said sale, or in the event that the rights of the purchaser at said sale and the terms of the sale under this judgment shall be assigned to and be acquired by the plaintiff, and a valid assignment thereof filed with said referee, said referee shall not require the plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the plaintiff a deed of the premises sold upon the payment to said referee of the amounts specified above in items marked "FIRST," "SECOND" and "THIRD"; that the balance of the amount bid, after the deduction therefrom of the aforesaid amounts paid by the plaintiff for taxes, referee's fees and advertising and other expenses of the sale shall be allowed to the plaintiff and applied by said referee upon the amounts due to the plaintiff as specified above in items marked "FOURTH" and "FIFTH"; that if after so applying the balance of the amount bid, there shall be a surplus over and above the said amounts due to the plaintiff, the plaintiff shall pay to said referee, upon delivery to plaintiff of said referee's deed, the amount of such surplus;

SIXTH. The referee shall deposit the surplus monies, if any, with the Cortland County Clerk within 5 days after the same shall be received and be ascertainable, to the credit of this action, to be withdrawn only on the order of the Court, signed by a Justice of the Court, that the said referee make a report of such sale under oath showing the disposition of the proceeds of the sale and accompanied by the vouchers of the persons to whom payments were made and to file it with the Clerk within 30 days after completing the sale and executing the proper conveyance to

the purchaser; and it is further

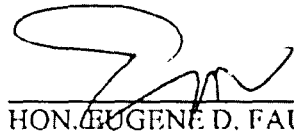
ORDERED, ADJUDGED AND DECREED that the purchaser at said sale be let into legal possession of the mortgaged premises on production of the referee's deed; and it is further

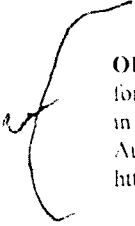
ORDERED, ADJUDGED AND DECREED that each and all of the defendants in this action and any and all persons, parties or entities claiming under or through them or any or either of them, after the filing of such Notice of Pendency of this action, be and they are hereby forever barred and foreclosed of any and all right, claim, lien, title, interest and equity of redemption in the said mortgaged premises and each and every part thereof; and it is further

ORDERED that nothing herein shall be deemed to relieve plaintiff of any obligation imposed by RPAPL 1307 to maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED that when the referee files a report of sale, as directed in the judgment of foreclosure, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form.

Dated: May 31, 2024


HON. EUGENE D. FAUGHNAN

 **ORDERED, ADJUDGED and DECREED** that the foreclosure auction shall be scheduled and conducted in accordance with the Sixth Judicial District Foreclosure Auction Plan, a copy of which can be found at <http://ww2.nycourts.gov/foreclosure-information-31001>.





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5 Pages
JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

At ^{1st Term} ~~Part~~ of the SUPREME Court, held in the County of Cortland at the Cortland County Courthouse on February 16, 2024 (Final submissions on April 19, 2024)

PRESENT: Hon. MARK G. MAUER
JUSTICE OF THE SUPREME COURT

-----X INDEX NO.: EF19-1489

U.S. Bank National Association, not in its individual capacity but solely as trustee for the RMAC Trust, Series 2018 G-CTT,

Mortgage Servicer as of 1/19/2024:
Nationstar Mortgage LLC,
d/b/a Mr. Cooper
Telephone Number: 1-888-480-2432

Plaintiff(s),

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY:
1931 Carter Slocum Road
Marathon, NY 13803
SBL #: 130.00 / 02 / 09.000

-v-

Dylan Preston, as Administrator and Heir of the Estate of Carl E. Preston, Michelle Ewald, as Heir to the Estate of Carl E. Preston, Shane Burke, as Heir to the Estate of Carl E. Preston, Zackary Preston, as Heir to the Estate of Carl E. Preston, William Preston, as Heir to the Estate of Carl E. Preston, Victoria Secrist, New York State Department of Taxation and Finance, United States of America,,

Defendant(s).

-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on December 18,

MGM 2019, the 2nd Notice ^{1st} of Pendency filed in this action on November 10, 2022, the Notice of Motion ⁽³⁾ dated 1/19/24, 3/29/24, and 4/16/24, with exhibits thereto, dated January 19, 2024, the affirmation ⁽³⁾ by Robert Tremaroli, Esq., the affidavit of merit and amount

due by Destinee Jackson, who is Assistant Secretary of Nationstar Mortgage LLC, d/b/a Mr. Cooper, duly sworn to on August 14, 2023, together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by an attorney; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(i); and

UPON proof that non-appearing defendants Dylan Preston, as Administrator and Heir of the Estate of Carl E. Preston, Michelle Ewald, as Heir to the Estate of Carl E. Preston, Shane Burke, as Heir to the Estate of Carl E. Preston, Zackary Preston, as Heir to the Estate of Carl E. Preston, William Preston, as Heir to the Estate of Carl E. Preston, Victoria Secrist, New York State Department of Taxation and Finance are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Dante Armideo dated January 08, 2024, showing the sum of \$70,381.10 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by, Robert Tremaroli, Esq., attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is,

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2[c]) ("Disqualifications from Appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"), and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale of the Referee has received a written bid and Terms of Sale from Plaintiff, its successors, and/or assigns, or its representative as if Plaintiff were physically present to submit said bid ; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Terms of Sale be posted before the auction begins, and that the Referee afford the prospective bidders time to review the Terms of Sale; and it is further

ORDERED, ADJUDGED AND DECREED, that all bidders provide proof of identification and stand and state their names at the time their bid is made; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the

successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash (at the referee's discretion) or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the bidder risks loss of future bidding privileges and the court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, ^{in an escrow or IOLA account} ~~in any local banking institution insured by the FDIC~~ in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in said escrow or sold account in any local banking institution insured by the FDIC, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

AGM

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$70,381.10 with interest at the note rate from August 02, 2023 until the entry of judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage,

and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 4,975 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,800 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that is the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as

specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or person in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; the Terms of Sale and purchaser assumes all risk of loss or damage to the premises from the date of the foreclosure sale until the date of closing and thereafter; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding the handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within 6 months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further.

ORDERED, ADJUDGED AND DECREED, that each and all of the defendants in this action and all persons claiming under them, or any or either of them, after the filing of such notice of pendency of this action, be and they are hereby forever barred and foreclosed of all right, claim, lien, title, interest and equity of redemption in the said mortgage premises and the manufactured home and each and every part thereof

Said property is commonly known as 1931 Carter Slocum Road, Marathon, NY 13803.

The legal description of the mortgaged property referred to herein is annexed to the Complaint and Notice of Pendency.

DATED: May 20, 2024
Cortland, New York

ENTER:

MGML

Hon. MARIE G. MASLER
Supreme Court Justice

Our File No.: 01-092985-F00

Tammy L Barriger
Tammy L Barriger-Deputy Clerk



CJ-2024-00911
05/21/2024 07:04:43 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.

2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.

3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.

4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.

5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.

6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. ~~A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for~~ a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmljackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part 1a Term of the Supreme Court of the State of
New York, held in and for the County of
CORTLAND at the Courthouse thereof, 46
Greenbush St # 301, Cortland, NY 13045, on the
11th day of April, 2024.

P R E S E N T: Honorable Mark G. Masler, J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
U.S. BANK TRUST NATIONAL ASSOCIATION, INDEX NO.: EF23-284
NOT IN ITS INDIVIDUAL CAPACITY BUT
SOLELY AS OWNER TRUSTEE FOR RCF 2 EBO
TRUST,

Plaintiff,

vs.

SIDNEY F. HAIGHT; ERIC ALLEN AS JOHN
DOE #1; AUSTIN HAMILTON AS JOHN DOE #2;
JUN SWEENEY AS JOHN DOE #3; ROBERT
SWEENEY AS JOHN DOE #4,

Defendant(s).

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
8 WILLIAM STREET
CORTLAND, NY 13045
COUNTY: CORTLAND

Section 86.66, Block 02, Lot 29.000

Servicer: Selene Finance LP
Servicer Telephone: 877-768-3759

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on May 18,
2023, the Notice of Motion dated March 10, 2024, the affirmation of Jinghan Zhang, Esq. dated March 10, 2024 the MGM
affidavit of merit and amount due by Verlina Griffin who is a Document Execution Specialist of
Selene Finance LP, duly sworn to on October 19, 2023; together with the exhibits attached thereto,
all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

23-099386 - DrG



2024-02112
05/21/2024 07:10:46 AM

COURT & TRUST
Brooke Kemak, County Clerk

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants SIDNEY F. HAIGHT; ERIC ALLEN AS JOHN DOE # 1; AUSTIN HAMILTON AS JOHN DOE # 2; JUN SWEENEY AS JOHN DOE # 3; ROBERT SWEENEY AS JOHN DOE # 4 were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants SIDNEY F. HAIGHT; ERIC ALLEN AS JOHN DOE # 1; AUSTIN HAMILTON AS JOHN DOE # 2; JUN SWEENEY AS JOHN DOE # 3; ROBERT SWEENEY AS JOHN DOE # 4 are not absent, in accordance with RPAPL §1321(2);

AND the court having held a mandatory settlement conference in this action pursuant to CPLR §3408.

A settlement was not reached and the case was released from the settlement conference part on September 18, 2023.

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Russell E. Maines, Esq. dated February 22, 2024, showing the sum of \$210,642.71 due as of November 03, 2023 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction at the Cortland County Courthouse pursuant to the ^{Terms of Sale and Foreclosure Auction Plan attached as Exhibit A} by and under the MGM direction of Russell E. Maines, Esq., who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in the Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is

23-089386 - DrG

disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further or the referee has received a written bid and signed terms of sale from Plaintiff or its successors, assigns, or representative

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or

23-099386 - DrG

fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his IDLA or Escrow account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all

23-099386 - DrG

taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in said TOLA or escrow account, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of 750.00 in the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$210,642.71 with interest at the note

rate from November 3, 2023, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 2,055 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ Ø is hereby awarded to the Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 3,500 is hereby awarded to the Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third" and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against SIDNEY F. HAIGHT in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

23-099386 - DrG

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 8 WILLIAM STREET CORTLAND, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule "A".~~

DATED: *MAY 20 2024*
Cortland, New York

ENTER: *MGM*
HON. MARK G. MASLER
Supreme Court Justice

Tammy L. Barriger
Tammy L. Barriger Deputy Clerk



CJ-2024-00912
05/21/2024 07:10:46 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

23-099388 - DrG

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an L.A.S. Term, part 1a/ of the
Supreme Court of the County of Cortland
held in the Cortland Supreme Court in the
city of Cortland, New York on the
22nd day of March,
20 24.

PRESENT: HON. HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
CALIBER HOME LOANS, INC.

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff

INDEX #: EF22-432

VS

DANIELLE PRICE AKA DANIELLE A PRICE

MORTGAGED PREMISES:

2879 Eastview Terrace
Cincinnati, NY 13040

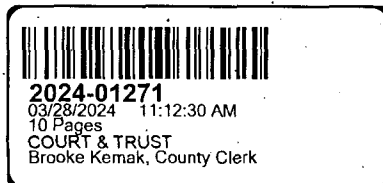
Defendant(s)

Mortgage Servicer:
Allied First Bank, SB dba Servbank
Mortgage Servicer Phone Number:
866-867-0330

-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on October
6, 2022, the Notice of Motion dated January 30, 2024 and the affirmation by Anthony J. Rooney¹ dated January 30, 2024 ^{MGM}
the affidavit of merit and amount due by Cindy Cowden who is Vice President of Allied First
Bank, SB dba Servbank, duly sworn to Tanner Combs on September 14, 2023, together with the
^{MGM} Exhibits annexed ¹⁺¹ hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and
Sale; and

UPON proof that ~~each of the Defendants herein~~ has been duly served with the Summons



and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their ^{herl} time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Danielle Price AKA Danielle A Price who have not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and ^{MGM}

UPON the Affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendant Danielle Price AKA Danielle A Price is not absentee; in accordance with RPAPL § 1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Edward W. Goehler, Esq. dated January 17, 2024, showing the sum of \$200,458.62, due as of August 15, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Anthony J. Rooney, attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and ~~as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL ^{MGM}

be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Main Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the MGM
pursuant to the Terms of Sale and Foreclosure Auction Plan attached hereto
extent possible, at _____ AM/PM[^] by and under the direction of Edward W. Goehler,
Esq., 11 Groton Ave, Cortland, NY 13045, (607) 758-8080 who is appointed Referee for that
purpose; that said Referee give public notice of the time and place of sale in accordance with
RPAPL § 231 in Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from
Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if
the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule,
the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting
or retaining any funds for him/herself or paying funds to him/herself without compliance with
Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the
foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present
at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its
successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale
within 90 days of the date of the judgment, in accordance with CPLR § 2004, the time fixed by RPAPL § 135(1) is extended MGM
for the Referee to
conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall

accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account as Referee, in accordance with CPLR § 2609; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party

shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of the completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a Court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in an escrow or ^{100% account} and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows: MGM

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR § 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more ~~OR~~ In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after

the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$200,458.62 with interest at the Note rate from August 15, 2023 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. \$1,820.23¹ adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance. \$50.00¹ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment,

pursuant to CPLR Article 83;

Attorney Fees. \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Danielle Price AKA Danielle A Price in accordance with RPAPL §1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through ^{her} them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

MCM

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable

judicial district foreclosure auction plan and rules in effect at the time of the auction; and it is further

ORDERED, that ALLIED FIRST BANK, SB DBA SERVBANK be substituted into the caption in the place and stead of Plaintiff, and, following such substitution, that the Clerk of the Court amend the docket and electronic docket accordingly; and it is further

ORDERED, that the caption shall read as follows:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

-----X
ALLIED FIRST BANK, SB DBA SERVBANK

Plaintiff,

INDEX NO: EF22-432

vs.

DANIELLE PRICE AKA DANIELLE A PRICE

MORTGAGED PREMISES:
2879 Eastview Terrace
Cincinnati, NY 13040

Defendant(s).

-----X;

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule A.~~

ENTER,

Dated: March 28, 2024
Cortland, New York

Cortland, New York

MGM

HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Brooke Kemak
BROOKE KEMAK
COUNTY CLERK



CJ-2024-00598
03/28/2024 11:12:30 AM
10 Pages
JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

At Part a Term of the SUPREME Court, held in the County of Cortland at the _____ Courthouse thereof, on the 9th day of January, 2024

PRESENT: Hon MARK G. MASLER
JUSTICE OF THE SUPREME COURT

-----X
PennyMac Loan Services, LLC,

Plaintiff(s),

INDEX NO.: EF23-216
Mortgage Servicer as of 2023:
PennyMac Loan Services, LLC
Telephone Number: 1-888-870-6229

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE
MORTGAGED PROPERTY:**
2702 East River Road
Cortland, NY 13045
SBL #: 58.00 / 02 / 06.000

-v-
Timothy T. Barron, Jr.,

Defendant(s).

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on April 17, 2023, the affirmation by Kristina Negri, Esq. dated December 11, 2023, the affidavit of merit and amount due by Stormy Price, who is Authorized Representative of PennyMac Loan Services, LLC, duly sworn to on July 26, 2023, ~~the affidavit of merit and amount due by Stormy Price, who is~~ **MGM**
~~Authorized Representative of PennyMac Loan Services, LLC, duly sworn to on October 20, 2023,~~
together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor



had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since said Defendant Timothy T. Barron, Jr. was so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3) ^{1/11/23} ~~(b)~~ and MGM

UPON proof that non-appearing defendant Timothy T. Barron, Jr. is not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Referee Patrick Michael Snyder, Esq., dated November 06, 2023, showing the sum of \$134,169.22 due as of October 31, 2023 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by, Kristina Negri, Esq., attorney for Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, that the terms of the judgment of foreclosure and sale, pertaining to the location of the sale and the process by which said sale will be conducted, shall hereby conform to any changes imposed by the 6th Judicial District so that the sale is to occur in accordance with the district sale rules in place as of the time of the sale; and it is further

ORDERED, that the Plaintiff or Referee seeking to schedule a foreclosure auction shall submit request for a date and time to the Supreme Court Clerk of Cortland County; and it is further

ORDERED, that the Supreme Court Clerk of Cortland County respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the pursuant to the Terms of Sale and the Sixth Judicial District Foreclosure Auction Plan attached as Exhibit A RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at a public auction at the location provided by the Supreme Court Clerk, by and under the direction of Patrick Michael Snyder, Esq. 70 Port Watson Street, Cortland, New York 13045-3030, (607) 753-8050, who is hereby appointed Referee for that purpose; and it is further

ORDERED, ADJUDGED AND DECREED, that express prior approval must be given to Referee or Plaintiff by the Supreme Court Clerk to schedule, advertise, or conduct a foreclosure auction and that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard
_____; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from Appointment"), and §36.2(d) ("Limitations on appointments based upon compensation"), and, if

the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale of the Referee has received a written bid and Terms of Sale from Plaintiff, its successors, and/or assigns, or its representative as if Plaintiff were physically present to submit said bid ; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED, that the Terms of Sale be posted before the auction begins, and that the Referee afford the prospective bidders time to review the Terms of Sale; and it is further

ORDERED, ADJUDGED AND DECREED, that all bidders provide proof of identification and stand and state their names at the time their bid is made; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash (at the referee's discretion) or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the bidder risks loss of future bidding privileges and the court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in any local banking institution insured by the in an escrow or IDLA account FDIC in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

MGM **ORDERED, ADJUDGED AND DECREED** that the Referee then deposit the balance of said proceeds of sale in an escrow or FOLA account in his/her own name as Referee in any local banking institution insured by the FDIC, and shall thereafter make the following payments in accordance with RPAPL§1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more OR in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of

\$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$134,169.22 with interest at the note rate from November 01, 2023 until the entry of judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred.

Costs and Disbursements: \$ 1,670 adjudged to the Plaintiff for costs and disbursements in this action, as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that is the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the

balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Timothy T. Barron, Jr. in accordance with RPAPL §1371 if permitted by law; and it further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or person in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; the Terms of Sale and purchaser

assumes all risk of loss or damage to the premises from the date of the foreclosure sale until the date of closing and thereafter; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding the handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within 6 months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

Said property is commonly known as 2702 East River Road, Cortland, NY 13045.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule A.~~

DATED: January 9, 2024
Cortland, New York

ENTER:

MGM
Hon. MARK G. MASER
Supreme Court Justice

Our File No.: 01-093192-F01

Brooke Kemak



CJ-2024-00193
01/10/2024 12:44:31 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

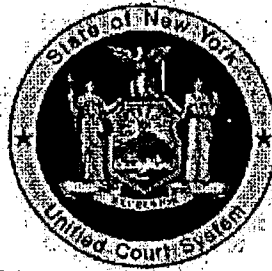
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a term of the Supreme Court held in and
for the County of Cortland, at the Courthouse
thereof, on the 11th day of January, 2024.

PRESENT: HON. MARK G. MASLER
Justice Presiding.

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

CITIZENS BANK, N.A.,

Plaintiff(s),

v

**LINDSEY CAROLE FIORE; CLERK OF
CORTLAND COUNTY**

Defendant(s).

**AMENDED JUDGMENT
OF FORECLOSURE
AND SALE**

Index No.: EF22-385

MORTGAGED PROPERTY:
270 Route 90
Cortland, New York 13048

Mortgage Servicer:
Citizen's Bank, N.A.

Phone #: 800-456-8855

Upon the summons and complaint filed herein on September 8, 2022, and notice of pendency of action previously filed herein on September 8, 2022, and on the attorney's statement of Jose O. Hasbun, Esq., dated May 23, 2023, demonstrating that all of the defendants have been duly served with the summons and complaint herein and the affidavits of service of the defendant previously filed herein, and upon the Order entered herein on July 26, 2023, appointing Dante Armideo, Esq., as referee to ascertain and compute the amount due to the plaintiff pursuant to the note and mortgage and to protect the lien of said mortgage, and to examine and report whether the mortgage premises can be sold in parcels; and affirmation of regularity of George Franke, Esq., sworn to on December 4, 2023; and



UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by their respective attorneys or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants Lindsey Carole Fiore and Clerk of Cortland County were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (iii); and

UPON proof that any non-appearing defendants are not absent, in accordance with RPAPL §1321 (2); and

A REFEREE having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the report of Dante Armideo, Esq., dated September 27, 2023, showing the sum of \$258,078.36 was due as of May 1, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by McCabe, Weisberg & Conway, LLC, attorneys for plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Dante Armideo, Esq., 39 Church Street, Cortland, New York 13045, (607) 758-8200, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or

cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$258,078.36 with interest at the note rate from May 2, 2023 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,063.75 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$4,950.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Lindsey Carole Fiore in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 270 Route 90, Cortland, New York 13045.

This judgment amends and supersedes the Judgment of Foreclosure and Sale entered in this action on January 12, 2024.

Dated: January 24, 2024
Cortland, New York

ENTER


HON. MARK G. MASLER
Supreme Court Justice





CJ-2024-00311

01/25/2024 07:06:20 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an a Term of the Supreme Court of
the State of New York, held in and for the
County of Cortland at the Courthouse
thereof, Supreme Court Building, 46
Greenbush Street, Suite 301, Cortland, New
York on the 24th day of
January, 2023: 2024.

PRESENT:

Honorable Mark G Masler
Justice, Presiding.

SUPREME COURT THE STATE OF NEW YORK:
COUNTY OF CORTLAND

-----X
DEUTSCHE BANK NATIONAL TRUST
COMPANY, AS TRUSTEE OF
AMERIQUEST MORTGAGE SECURITIES
INC., ASSET-BACKED PASS-THROUGH
CERTIFICATES, SERIES 2005-R8, UNDER
THE POOLING AND SERVICING
AGREEMENT DATED AS OF SEPTEMBER
1, 2005

Index No: EF20-668

**JUDGMENT OF FORECLOSURE AND
SALE**

Plaintiff.

-against-

SHAWN ARMSTRONG,
CORTLAND COUNTY DEPARTMENT OF
SOCIAL SERVICES,
CORTLAND REGIONAL MEDICAL
CENTER INC.,
ANDREW J. DAMIANO, DIRECTOR OF
ADMINISTRATION AND FINANCE OF THE
CITY OF CORTLAND, NEW YORK,

Mortgaged Premises:
202 Central Avenue
Cortland, New York 13045

Mortgage Servicer: PHH Mortgage
Corporation

Mortgage Servicer Phone #: 1-844-995-3682

Defendants.

-----X
Upon the summons and complaint filed herein on August 28, 2020, and notice of
pendency of action previously filed herein on August 28, 2020, and September 25, 2020, and on
the attorney's statement of Jose Hasbun, Esq., dated December 12, 2022, demonstrating that all



2024-00355
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COURT & TRUST
Brooke Kemak, County Clerk

of the defendants have been duly served with the summons and complaint herein and the affidavits of service of the defendant previously filed herein, and upon the Order entered herein on May 5, 2023 appointing Kelly Ann Damm, Esq., as referee to ascertain and compute the amount due to the plaintiff pursuant to the note and mortgage and to protect the lien of said mortgage, and to examine and report whether the mortgage premises can be sold in parcels; and

Upon reading and filing the report of the referee dated August 24, 2023, from which report it appears that the sum of \$176,655.43, was due to plaintiff, as of September 26, 2022, on the note and mortgage described in the complaint, and that the mortgaged premises should be sold in one parcel; and

Upon reading and filing the affirmation of regularity of George Franke, Esq. sworn to on September 15, 2023, from which it appears that this action was brought to foreclose a mortgage on certain real property situated in the County of Cortland and State of New York more commonly known as 202 Central Avenue, Cortland, New York 13045 and that the whole amount secured by said mortgage is due and payable as computed in the aforesaid Referee's report, and that all of the defendants herein have been duly served with the summons and complaint, and upon the entry of default judgment on plaintiff's foreclosure complaint against the defendants, and that none of the defendants is an infant, incompetent or absentee,

"Sale" is herein defined as the foreclosure auction date.

NOW, on motion of McCabe, Weisberg & Conway, LLC, attorneys for the plaintiff, it is

ORDERED, ADJUDGED and DECREED, that the report of the Referee, Kelly Ann Damm, Esq., dated August 24, 2023, is hereby amended to disallow the Property Preservation/ Maintenance Fee sought by plaintiff in the amount of \$77,643.25, which plaintiff has failed to substantiate, and to state the total sum due as of September 26, 2022, is \$99,102.18, and is hereby ratified and confirmed as so amended; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Kelly Ann Damm, Esq., P.O. Box 256, Ithaca, New York 14851-0256, (607) 277-8601, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-l of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or

cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$99,012.18 with interest at the note rate from September 27, 2022, until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,610 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$4,950.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known 202 Central Avenue, Cortland, New York 13045. .

Dated: January 24, 2024
Cortland, New York

ENTER

MGML

HON. MARK G. MASLER
Supreme Court Justice

Brooke Kernak



CJ-2024-00309

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kernak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmiackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At an ^{Term}IAS Part of the Supreme Court of the
State of New York held in and for the
County of Cortland at the Courthouse, 46
Greenbush Street, Cortland, New York on
the 5th day of January, 2024

Present: HON. MARK G. MASLER, Justice Presiding.

GITSIT SOLUTIONS, LLC,

Index No. EF22-264

**ORDER AMENDING THE
PLEADINGS AND ORDER OF
REFERENCE, NUNC PRO
TUNC, AND CONFIRMING
REFEREE'S REPORT
AND JUDGMENT OF
FORECLOSURE AND SALE**

Plaintiff,

-against-

MICHELE FINKELSTEIN AS HEIR AND
DISTRIBUTE OF MURLYN I. MARICLE; KIMBERLY
HOLL AS HEIR AND DISTRIBUTE OF MURLYN I.
MARICLE; CARLTON MARICLE AS HEIR AND
DISTRIBUTE OF MURLYN I. MARICLE; SECRETARY
OF HOUSING AND URBAN DEVELOPMENT; CORTLAND
COUNTY DEPARTMENT OF SOCIAL SERVICES;
NEW YORK STATE DEPARTMENT OF TAXATION
AND FINANCE; UNITED STATES OF AMERICA
(NORTHERN DISTRICT);

Mortgaged Premises:
186 Madison Street
Cortland, NY 13045

SBL: 86.47-01-18.000

Defendants.

UPON the Summons, Complaint, and Notice of Pendency filed in this action on June 27,
2022, the Notice of Motion dated December 4, 2023, the Affirmations of Michael P. Amodio, Esq.,
and the exhibits annexed thereto, and upon the Referee's Report of Amount Due dated October 4,
2023, together with the exhibits attached thereto, all in support of Plaintiff's motion for an Order to
amend the pleadings and Order of Reference, *nunc pro tunc*, and Confirming Referee's Report and



Judgment of Foreclosure and Sale; and

UPON proof this action was brought to foreclose a mortgage on real property located at 186 Madison Street, Cortland, NY 13045 in the County of Cortland, State of New York SBL 86.47-01-18.000, and

UPON proof that each the Defendant(s) herein have been duly served with the Summons and Complaint in this action, and have not served any Answer to the Complaint or otherwise appeared, except Defendants Cortland County Department of Social Services who appeared by Attorney and the defaulting defendants' time to do so has not been extended and it appearing that more than the legally required number of days has elapsed since the defaulting Defendants were served and Plaintiff having established to the court's satisfaction that a judgment against the defendants is warranted; and,

UPON proof that non-appearing defendants are not absent, in accordance with RPAPL §1321(2),

AND the Court having not held the mandatory settlement conference pursuant to CPLR 3408 because the mortgagor is deceased and the property is vacant;

A Referee having been appointed to compute the amount due to Plaintiff upon the Note and Mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Donald C. Armstrong, Esq. dated October 4, 2023 showing the sum of \$139,445.99 due as of July 31, 2023 and that the mortgaged property may not be sold in parcels; and

UPON proof of the due notice of this motion upon all parties entitled to receive same and upon all the ^{prior} proceedings and papers filed herein;

MGM NOW, upon motion of McGovern & Amodio, LLC, the attorneys for Plaintiff, it is

ORDERED, that the motion is granted in its entirety; and it is further,

ORDERED that the pleadings and Order of Reference are amended to include Liza Maricle as Heir and Distributee of Murlyn I. Maricle as a Defendant; and it is further,

ORDERED, ADJUDGED AND DECREED that, in accordance with the Referee's Report he and the same is hereby in all respects ratified and confirmed and it is further,

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale and the costs of this action as provided by the Real Property

MGM Actions and Proceedings Law be sold, within 90 days of the date of this Judgment, in one parcel at Pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A public auction at the Foreclosure Auction Area, Lobby of the Cortland County Courthouse, 46

Greenbush Street, Cortland, New York by and under the direction of Donald C. Armstrong, Esq., Referee, who is hereby appointed Referee for that purpose; that the said Referee shall set the date of sale and give public notice of the time and place of sale in accordance with RPAPL §231 in the

MGM Cortland Standard _____ And _____ and it is further

ORDERED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including but not limited to §36.2 (c) ("Disqualifications from appointment") and §36.2 (d) ("Limitations on appointments based upon compensation"); and if the Referee is disqualified from receiving an

appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assigns, or its representative is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that in the event any scheduled foreclosure sale is cancelled or postponed (other than at the direction of the referee), the Plaintiff shall forthwith compensate the Referee, pursuant to CPLR 8003, in the amount of \$250.00 for each cancelled or postponed sale. Said payment shall constitute a cost to Plaintiff which shall be added to the indebtedness due under this Judgment of Foreclosure And Sale; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of the sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that said Referee shall accept the highest bid offered by a bidder, who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property and to pay to the Referee in cash or certified or bank check, ten percent (10%) of the sum bid and shall, unless such successful bidder is the Plaintiff in which case, no deposit against the purchase price shall be required, and it is further,

ORDERED, ADJUDGED AND DECREED that in the event that the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately, on the same day be re-offered at auction; and it is further,

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after such sale unless otherwise stipulated by all parties to the sale, and it is further,

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceed diligently to completion, whichever comes first, provided however, that a court of competent

jurisdiction may grant an extension for good cause, and it is further,

ORDERED, ADJUDGED AND DECREED that the Referee on receiving the proceeds of such sale shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of the sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an FDIC-insured bank of the Referee's choice within the County of Westchester in his/her with CPLR 2609 and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more and in the event that the sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, sewer rents, water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties.

or fees assessed;

THIRD: The expenses of the sale and advertising expenses as shown on bills presented and certified by the Referee to be correct, duplicate copies of which shall be annexed to the Report of Sale;

FOURTH: The Referee shall pay to the Plaintiff or its attorneys, the following:

Amount Due per Referee's Report: \$139,445.99 with interest at the note rate from July 31, 2023 to the date of entry of this Judgment together with any advances as provided for in the note and mortgage, which Plaintiff has made for taxes, insurance, principal and interest and any other charges due to prior mortgages, or to maintain the premises pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest pursuant to the note and mortgage and then with interest from the date of entry of this judgment at the statutory rate until the deed is transferred:

Costs and Disbursements: \$ 2,900.86 adjudged to the Plaintiff for costs and disbursement in this action as taxed or calculated by the Clerk and inserted herein, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ 0 is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$ 5,650.00 - is hereby awarded to Plaintiff as reasonable legal fees herein with interest at the statutory judgment rate from the date

of entry of this judgment;

FIFTH: After payment of the above sums in paragraphs "FIRST" through FOURTH, the Referee is directed to pay over such sums from the proceeds of the sale, if any, and after payment of same, surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4)

a. The Referee appointed to conduct the sale shall complete the Foreclosure Action Surplus Monies Form and file it with both the Cortland County Clerk and the Clerk of the Court within 30 days; and

b. If the foreclosure sale does not yield surplus funds, the Foreclosure Action Surplus monies Form should so indicate; and

c. The Referee shall submit proof of deposit of any surplus monies with the Cortland County Clerk within thirty (30) days of the date of closing title, and it is further,

ORDERED, ADJUDGED AND DECREED, that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid as said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon payment to said Referee of the amounts specified in items marked "FIRST," "SECOND" and "THIRD" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "SECOND" and "THIRD" above when its recording the deed, that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff.

as specified in paragraph "FOURTH" above; that the Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "FIFTH" above, and it is further,

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further,

ORDERED, ADJUDGED AND DECREED that Plaintiff may not seek to recover a deficiency judgment as per the terms of the Note; and it is further,

ORDERED, ADJUDGED AND DECREED that mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts an accurate survey of the property would show, any covenants, restrictions, declarations, reservations, easements, rights of way and public utility agreements of record, if any, any building and zoning ordinances of the municipality in which the mortgage premises is located and possible violations of same, any rights of tenants or persons in possession, of the subject property, prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further,

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's

Deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, interest in the property after the sale of the mortgaged property and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the Clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding the handling of Surplus Monies, and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application, and it is further

ORDERED ADJUDGED AND DECREED that the Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, if any, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein, and it is further

ORDERED ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further,

ORDERED ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further,

ORDERED, ADJUDGED AND DECREED that the caption is amended to read as follows:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

Index No. EF22-264

-----X
GITSIT SOLUTIONS, LLC,

Plaintiff,

-against-

MICHELE FINKELSTEIN
AS HEIR AND DISTRIBUTE OF MURLYN I.
MARICLE; KIMBERLY HOLL AS HEIR AND
DISTRIBUTE OF MURLYN I. MARICLE;
CARLTON MARICLE AS
HEIR AND DISTRIBUTE OF MURLYN I.
MARICLE; SECRETARY OF HOUSING AND
URBAN DEVELOPMENT; CORTLAND COUNTY
DEPARTMENT OF SOCIAL SERVICES; NEW YORK
STATE DEPARTMENT OF TAXATION AND
FINANCE; UNITED STATES OF AMERICA,
and LIZA MARICLE AS HEIR AND DISTRIBUTE
OF MURLYN I. MARICLE,

Defendants.
-----X

Said property is commonly known as 186 Madison Street, Cortland, NY 13045,
SBL No. 86,47-01-18000.

~~The legal description of the mortgaged property referred to herein is annexed hereto as
Schedule A.~~ MGA

Dated: January 9, 2024
Cortland, New York

ENTER:

MGM

Hon. Mark G. Masler
Justice of the Supreme Court

11

Brooke Kemak



CJ-2024-00196

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JUDGMENT OF FORECLOSURE AND SA
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

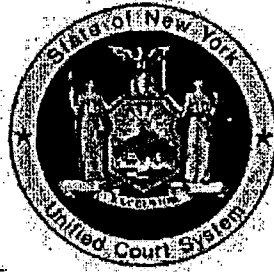
7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At Part _____ of the Supreme Court held in
and for the County of Cortland, at the
courthouse located at 46 Greenbush Street,
Cortland, NY, on the 13th day of
February, 2024.

PRESENT: Hon. Julie A. Campbell
JUSTICE OF THE SUPREME COURT

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

WELLS FARGO BANK, N.A.,

Plaintiff,

v.

JOHN A. SHEPARD A/K/A JOHN SHEPARD,
MIDLAND FUNDING LLC, BOBBIE JO SHEPARD,
FORTUNA ENERGY, INC.,

Defendants.

INDEX NO.: EF19-576

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF FORECLOSURE
AND SALE**

MORTGAGED PROPERTY:
3801 Route 221 a/k/a 3801 Route 221
East a/k/a 3801 N.Y.S. Route 221
a/k/a 3801 RR 221 a/k/a
State Route 221
Marathon, NY 13803

SBL No.: 158.00-01-23.000
Mortgage Servicer: Wells Fargo
Home Mortgage

Telephone Number: 1-877-617-5274

UPON the Summons, Complaint, and Notice of Pendency filed in this action on May 13,
2019 and a Supplemental Notice of Pendency filed on January 31, 2023 the Notice of Motion dated
January 11, 2024, the affirmation of Richard S. Mullen, Esq. dated January 11, 2024, the Affidavit
of Merit and Amounts Due and Owing of Laura Christina Lynch who is Vice President Loan
Documentation of Wells Fargo Bank, N.A., duly sworn to on October 29, 2019, the Supplemental

100769-3
Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576



2024-00632

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COURT & TRUST
Brooke Kemak, County Clerk

Affidavit of Merit of Iris Campbell who is Vice President Loan Documentation of Wells Fargo Bank, N.A., duly sworn to on November 10, 2023 together with the exhibits annexed thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants JOHN A. SHEPARD A/K/A JOHN SHEPARD, MIDLAND FUNDING LLC, BOBBIE JO SHEPARD, FORTUNA ENERGY, INC. were so served; and Plaintiff having established to the court's satisfaction that a judgment against Defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants JOHN A. SHEPARD A/K/A JOHN SHEPARD, MIDLAND FUNDING LLC, BOBBIE JO SHEPARD, FORTUNA ENERGY, INC. are not absent, in accordance with RPAPL §1321(2); and

A Referee having been appointed by Order dated March 30, 2023 to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Ronald T. Walsh, Esq. dated December 6, 2023, showing the sum of \$108,947.98 due as of November 9, 2023 and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

NOW, on motion by Woods Oviatt Gilman LLP, attorney for the Plaintiff, it is hereby
ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is,
hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the
Complaint and as hereafter described, or such part thereof as may be sufficient to discharge the
mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be
sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Cortland
County Courthouse, 46 Greenbush Street, Cortland by and under the direction of Ronald T. Walsh,
Esq., 45 Church Street, Cortland, NY 13045, 607-753-9641 who is hereby appointed Referee for
that purpose; that said Referee give public notice of the time and place of sale in accordance with
RPAPL § 231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the
Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
NYCRR Part 36), including, but not limited to §36.2 (c) ("Disqualifications from appointment")
and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is
disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting
or retaining any funds for him/herself or paying funds to him/herself without compliance with Part
36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure
sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or

the Referee has received a written bid from Plaintiff, its successors and/or assignee, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his/her IOLA account in accordance with CPLR 2609; and it is further his/her IOLA account

ORDERED, ADJUDGED and DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute the Memorandum of Sale for the purchase of the property, in the form attached hereto and incorporated herein, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED and DECREED that in the event the first successful bidder fails to execute the Memorandum of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall deposit the down payment and proceeds of sale, as necessary, in the Referee's IOLA account, in accordance with CPLR §2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) or subdivision 1 of section six-I of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that said Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

said proceeds of sale in the Referee's IOLA account and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$200.00 for each adjournment or cancellation without a 24 hour notice, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$108,947.98, the amount so reported as due aforesaid, together with interest at the contract thereon from the

date computed to in the Referee's Report of Amount Due until the date of entry of this judgment, with interest thereafter at the statutory rate until the date of transfer of the Referee's deed.

Costs and Disbursements: \$ 1,987.80 hereby adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

~~**Additional Allowance:** \$ _____ is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;~~

Attorney Fees: \$ 3,562.50 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

Additional Advances: The amount of any advances which plaintiff may make for taxes, insurance premiums or other advances necessary to preserve or maintain the premises pending the consummation of this foreclosure sale, whether such advances were made prior to or after entry of judgment, so long as such advances were not included in the Referee's Report of Amount Due and are documented by receipts provided to the Referee, all together with interest thereon pursuant to the note and mortgage;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and in accordance with local County rules regarding Surplus

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court, Index #: EF19-576

Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at said sale shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its/her/his assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, ; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against John A. Shepard aka John Shepard in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to the following, provided that they do not render title unmarketable: any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same any rights of tenants or persons in possession of the subject property; superior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff has established standing in this action; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale

and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the "New Auction Rules for the Judicial District" annexed to this

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

Judgment shall be incorporated into the Terms of Sale for auctions held during the COVID-19 health emergency.

Said property is commonly known as 3801 Route 221 a/k/a 3801 Route 221 East a/k/a 3801 N.Y.S. Route 221 a/k/a 3801 RR 221 a/k/a, State Route 221, Marathon, NY 13803.

The legal description of the mortgaged property referred to herein is annexed hereto as Schedule A, together with the terms of Sale.

ENTER:

DATED: February 13, 2024

Julie A. Campbell
Digitally signed by
Hon. Julie A. Campbell
2/13/2024, 8:51:32 AM

Hon. Julie A. Campbell, A.S.J.C.

Brooke Kemak



CJ-2024-00401

02/13/2024 02:53:18 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court, Index #: EF19-576

SCHEDULE A

Property Address:

3801 Route 221 a/k/a 3801 Route 221 East a/k/a 3801 N.Y.S. Route 221 a/k/a 3801 RR 221 a/k/a
State Route 221
Marathon, NY 13803

SBL No.: 158.00-01-23.000

ALL that tract or parcel of land, situate in the Town of Marathon, County of Cortland, State of New York, bounded and described as follows:

BEGINNING at a point in the centerline of N.Y.S Route 221, said point being located a distance of 852± feet Westerly from the intersection of the centerline of N.Y.S Route 221 and the centerline of Jennings Road;

THENCE the following three courses and distances along the centerline of N.Y.S. Route 221;

- 1) South 85 degrees 55 minutes 00 seconds West a distance of 120.00 feet to a point;**
- 2) South 80 degrees 07 minutes 00 seconds West a distance of 280.00 feet to a point;**
- 3) South 77 degrees 58 minutes 00 seconds West a distance of 105.18 feet to a point;**

THENCE North 04 degrees 00 minutes 00 seconds East a distance of 1,593.66 feet to a point marked by a set 5/8" rebar with survey cap,

THENCE South 77 degrees 28 minutes 00 seconds East a distance of 378.00 feet to a point marked by a maple tree,

THENCE South 00 degrees 35 minutes 00 seconds East a distance of 1,169.93 feet to the point and place of BEGINNING

There is ALSO conveyed to the party of the second part the right of ingress and egress from the Salt Road to the lands above conveyed over an established right of way which is located on the remaining lands of now or formerly of Arthur Ensign (R O 206/118) near his north line.

It is understood and agreed that the party of the second part, his heirs and assigns forever maintain the line fence separating the above conveyed premises and the remaining premises of now or formerly of Arthur Ensign (R O 206/118) adjoining on the East.

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

The premises are more particularly described on a map of "Lands of Kenneth M. Johnson" made by G. Bruce Davison, L.S. 49603, dated May 24, 2005, incorporated herein by reference and attached hereto;

Subject to easements, covenants, and restriction of record.

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

WELLS FARGO BANK, N.A.,

Plaintiff,

TERMS OF SALE

Index No.: EF19-576

v.

JOHN A. SHEPARD A/K/A JOHN SHEPARD, MIDLAND
FUNDING LLC, BOBBIE JO SHEPARD, FORTUNA
ENERGY, INC.,

Defendants.

The premises commonly known as 3801 Route 221 a/k/a 3801 Route 221 East a/k/a 3801 N.Y.S. Route 221 a/k/a 3801 RR 221 a/k/a, State Route 221, Marathon, NY 13803 (Tax Acct. # SBL No.: 158.00-01-23.000) and described in the Notice of Sale will be published in the newspaper and which will be read to you, will be sold by me, that is Ronald T. Walsh, Esq., as Referee, in one parcel upon the following terms:

1. Ten percent (10%) of the purchase price for the premises will be required to be paid by certified check or bank check here today at the completion of the sale for which a Referee's receipt will be given. I, as Referee, will give full credit for any deposit in excess of ten percent (10%).
2. The balance of the purchase money will be required to be paid to me, as Referee, at my office at _____ at _____:_____ on _____ (will be as close as practical to, but no later than, forty-five days from the date of the sale) when the Referee's deed will be delivered. I, as Referee, will not send any notice to the purchaser and if he or she neglects to call at the time and place above specified, to receive the deed, unless I deem it proper to extend time for the completion of

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court, Index #: EF19-576

the purchase of up to an additional fifteen (15) days. The Plaintiff will have the option in its sole discretion, and without leave of the court, to (1) adjourn the closing at the request of the purchaser, in which event the purchaser will be charged with interest at 9% per annum from today's date through the eventual closing date on the whole of the purchase price as well as assuming responsibility for any and all reasonable costs incurred as a result of the adjournment, or (2) sell to the second highest bidder and the 10% deposit will be applied to the deficiency and interest at 9% per annum from today's date through the eventual closing date on the whole of the purchase price, as well as any and all reasonable costs incurred as a result of purchaser's failure to complete the purchase or (3) elect to reschedule the foreclosure sale and the 10% deposit will be retained by me, as Referee, and applied to the proceeds of the rescheduled foreclosure. The Purchaser will be held liable for any deficiency there may be between the sum for which the premises shall be struck down upon this sale and the price for which the premises may be purchased at the rescheduled sale, plus interest and costs, as I have just described. Should there be an excess, it will be returned. My retention and application of the deposit shall not be deemed a waiver of any of the rights of the Plaintiff to seek and obtain damages from the defaulting bidder.

3. The Referee is authorized to accept a written opening bid from the Plaintiff or the Plaintiff's attorneys, just as though the Plaintiff appeared in person. If the Plaintiff is the successful bidder, the deposit required by paragraph "1" above will be waived.

4. The premises shall be sold in "as is" physical order and condition as of this date and subject to:

(a) rights of the public and others in and to any part of the mortgaged premises which lie within the bounds of any street or highway.

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court, Index #: EF19-576

(b) restrictions and easements of record, provided the same do not render title unmarketable.

(c) any state of facts that an accurate survey would show

(d) the rights of tenants who have been named party Defendants, month to month tenants, or tenants at sufferance, if any. It shall be the responsibility of the purchaser to evict or remove any such tenants in possession of the premises. There shall be no adjustment in favor of the purchaser for any rents that are paid for a period of up to two months after the date of this sale.

(e) local zoning, building and land use planning ordinances and laws

(f) if applicable, the rights of any third party that owns and has leased solar panels for use on the subject property. This sale is subject to any rights of the owner of the solar panels under their lease agreement for the subject property, as well as rights of the owner of the solar panels to access the property, and remove the solar panels pursuant to said lease agreement and any stipulation of settlement filed within the subject foreclosure action.

(g) (read only if United States or a Federal Agency is a party). The United States shall have one year from the date of sale within to redeem this property except that with respect to a lien arising under the Internal Revenue Law, the period shall be 120 days, and except in any case in which the provisions of Section 505 of the Housing Act of 1950 apply, where there is no right of redemption.

5. I, as Referee, shall pay out of the proceeds all taxes, assessments, sewer rents and water rates, including interest and penalties, if any, which are liens upon the premises as of this date and I will redeem the property sold from any sales for unpaid taxes, assessments, sewer rents, or water rates which have not apparently become absolute.

100769-3

Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

6. No abstract of title or survey will be furnished, except that the court has required the Plaintiff's attorneys to provide the successful bidder with the original of any abstract and legible copies of any title notes, reports, policies and surveys actually in their possession within five (5) business days of this date. The Cost of the preparation and continuation of abstracts of title, surveys, as well as all expenses of recording the referee's deed, including real estate transfer taxes, recording and filing fees, shall be paid by the purchaser.

7. Risk of loss shall not be shifted to the purchaser until delivery of the deed, or transfer of possession, whichever occurs first.

8. The purchaser may refuse to close if title is unmarketable (see Jorgensen v. Endicott Trust Company 100 AD 2d 647 and Regan v. Lanze 40 NY 2d 475). In such event, his or her deposit shall be returned and purchaser's remedy shall be limited to the return of his or her deposit. Except if bad faith is shown, neither the referee nor the Plaintiff or Plaintiff's attorneys shall be liable to the purchaser for any consequential or other damages whatsoever.

9. The purchaser shall, at this place, upon becoming the successful bidder, today sign a memorandum of his or her purchase and an agreement to comply with the terms and conditions herein contained which I have just read to you.

10. The auction and closing will be conducted in accordance with the Court System's COVID-19 mitigation protocols and as such all persons must comply with social distancing, wearing masks and screening practices in effect at the time of this foreclosure sale and closing.

Dated:

Ronald T. Walsh, Esq., Referee

100769-3
Wells Fargo Bank, N.A., etc. vs. John A. Shepard, et al.
Cortland County Supreme Court , Index #: EF19-576

~~FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM~~~~INDEX NO. EF18-420~~

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

At Part _____ of the Supreme Court of the State of New York, held in and for the County of CORTLAND at the Courthouse thereof, 46 Greenbush Street, Suite 301, Cortland, NY 13045, on the 26th day of January, 2024, 2023.

P R E S E N T: Honorable Julie A. Campbell, A.J.S.C.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND

X

WILMINGTON SAVINGS FUND SOCIETY,
FSB, NOT INDIVIDUALLY BUT SOLELY AS
TRUSTEE FOR FINANCE OF AMERICA
STRUCTURED SECURITIES ACQUISITION
TRUST 2018-HB,

Plaintiff(s),

v.

ROBERT W. FAIRCHILD, AS HEIR AND
DISTRIBUTE OF THE ESTATE OF JERRY
FAIRCHILD A/K/A JERRY F. FAIRCHILD;
SARA KELLY, AS HEIR AND DISTRIBUTE
OF THE ESTATE OF JERRY FAIRCHILD
A/K/A JERRY F. FAIRCHILD; UNKNOWN
HEIRS AND DISTRIBUTEES OF THE ESTATE
OF JERRY FAIRCHILD A/K/A JERRY F.
FAIRCHILD, and any and all persons unknown to
Plaintiff, claiming, or who may claim to have an
interest in, or general or specific lien upon the real
property described in this action; such unknown
persons being herein generally described and
intended to be included in the following
designation, namely: the wife, widow, husband,
widower, heirs at law, next of kin, descendants,
executors, administrators, devisees, legatees,
creditors, trustees, committees, lienors, and
assignees of such deceased, any and all persons

INDEX NO.: EF18-420

ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE

MORTGAGED PROPERTY: 6414
STEGER ROAD PREBLE, NY 13141

COUNTY: CORTLAND

SBL#: Section 37.00, Block 01, Lot
10.000

Servicer: Compu-Link Corporation
Servicer Telephone: (866) 446-0026

18-148223 - DaR

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01/26/2024 10:21:55 AM

COURT & TRUST
Brooke Kemak, County Clerk

~~FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM~~

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; SECRETARY OF HOUSING AND URBAN DEVELOPMENT; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNITED STATES OF AMERICA BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD,

Defendant(s).

-----X

UPON the Summons, Complaint and Notice of Pendency filed in this action on April 11, 2018, the subsequent Notice of Pendency filed on June 17, 2021, the Supplemental Summons and Amended Notice of Pendency filed on November 18, 2021, the affirmation of Orit Avraham, Esq. the affidavit of merit and amount due by SAMANTHA BLOM who is ASSISTANT SECRETARY of COMPU-LINK CORPORATION DBA CELINK AS ATTORNEY IN FACT FOR WILMINGTON SAVINGS FUND SOCIETY, FSB, NOT INDIVIDUALLY BUT SOLELY AS TRUSTEE FOR FINANCE OF AMERICA STRUCTURED SECURITIES ACQUISITION TRUST 2018-HB1, duly sworn to on November 03, 2022; together with the exhibits attached thereto, all in support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

UPON proof that each of the Defendants herein have been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by their respective attorneys or have not served any answer to the Complaint or otherwise appeared, nor had their time to so do extended; and it appearing that more than the legally required number of days had elapsed since said Defendants ROBERT W. FAIRCHILD, SARA KELLY and NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against the defendants is warranted;

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendants ROBERT W. FAIRCHILD, SARA KELLY and NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE are not absent, in accordance with RPAPL §1321(2);

AND the court having held a mandatory settlement conference in this action pursuant to CPLR §3408.

A settlement was not reached and the case was released from the settlement conference part on November 18, 2021.

A Referee having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

UPON reading and filing the Report of Patrick Michael Snyder, Esq., dated July 25, 2023, showing the sum of \$131,249.14 due as of November 02, 2022 and that the mortgaged property cannot be sold in parcels; and

UPON proof of due notice of this application upon all parties entitled to receive same, and upon all of the prior proceedings and papers filed herein; and

ORDERED that the motion is granted; without opposition and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property described in the Complaint in this action and as hereafter described, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days from the date of this Judgment, in one parcel, at public auction at the Cortland County Courthouse, 46 Greenbush St., Cortland, NY 13045 by and under the direction of Patrick Michael Snyder, Esq., 70 Port Watson Street, Cortland, NY 13045 who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment"),

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

and §36.2(d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum-bid, unless the successful bidder is the Plaintiff in which case no deposit against the purchase price shall be required; and it is further

18-148223 - DaR

ORDERED, ADJUDGED AND DECREED that in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in his IOLA account at Tompkins Trust in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be had thirty (30) days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within one hundred eighty (180) days of the execution of the deed of sale, or (b) within ninety (90) days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

first, provided however, a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in his IOLA account at Tompkins Trust, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), in the sum of \$750.00 in the event a sale was canceled or postponed, Plaintiff shall compensate the Referee in the sum of \$ 200.00 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be held responsible for the payment of penalties or

fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$131,249.14 with interest at the note rate due as of November 2, 2022, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$ 3,959.02, adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

~~Additional Allowance: \$XXXXXXXXXXXX is hereby awarded to the~~
~~Plaintiff in addition to costs, with interest at the statutory judgment rate from the~~
~~date of entry of this judgment pursuant to CPLR Article 83;~~

Attorney Fees: \$ 3,500.00 is hereby awarded to the
Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the
date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by
the officer conducting the sale within five days after receipt in accordance with
RPAPL §1354(4) and in accordance with local County rules regarding Surplus
Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the
property, or in the event that the rights of the purchasers at such sale and the terms of sale under
this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment
thereof is filed with said Referee, said Referee shall not require the Plaintiff to pay in cash the
entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed
or deeds of the property sold upon the payment to said Referee of the amounts specified in items
marked "First" , "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay
the amounts specified in "Second" and "Third" above when it is recording the deed; that the
balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the
amount due Plaintiff as specified in paragraph "Fourth" above; that if there is a surplus after

applying the balance of the bid, the Plaintiff shall pay that amount to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds; and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED, AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any state of facts that an inspection of the property would disclose; any state of facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR §317, §2003 and §5015 or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property on production of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR §308; and it is further

18-148223 - DaR

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within thirty days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless the Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED ADJUDGED AND DECREED that the Notice of Pendency filed on June 17, 2021 be deemed filed, *nunc pro tunc*, to the date of the expiration of the Notice of Pendency on April 11, 2021; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 6414 STEGER ROAD, PREBLE, NY 13141.

The legal description of the mortgaged property referred to herein is annexed hereto as Schedule "A".

DATED: January 26, 2024

ENTER:

Digitally signed by
Hon. Julie A. Campbell
1/26/2024, 9:18:27 AM

Hon. Julie A. Campbell

A.J.S.C.

Tammy L. Barriger
Tammy L. Barriger - Deputy Clerk



CJ-2024-00312
01/26/2024 10:21:55 AM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

FILED: CORTLAND COUNTY CLERK 11/18/2021 10:12 AM

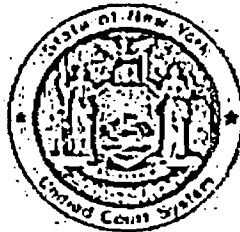
NYSCEF DOC. NO. 74

INDEX NO. EF1

RECEIVED NYSCEF: 11/18

SCHEDULE A - "LEGAL DESCRIPTION"**Property Address: 6414 STEGER ROAD, PREBLE, NY 13141**

ALL THAT TRACT OR PARCEL OF LAND, SITUATE IN THE TOWN OF PREBLE, COUNTY OF CORTLAND AND STATE OF NEW YORK, BEING PART OF LOT 96 AND 97 IN SAID TOWN, BOUNDED AND DESCRIBED AS FOLLOWS:
BEGINNING AT A POINT IN THE WESTERLY BOUNDARY LINE OF N.Y.S. ROUTE 281 WHICH POINT IS LOCATED NORTH 34 DEGREES 38 MINUTES 20 SECONDS WEST A DISTANCE OF 59.83 FEET FROM THE CENTERLINE OF SAID N.Y.S. ROUTE 281 MARKED BY A FOUND CONCRETE MONUMENT;
RUNNING THENCE NORTH 55 DEGREES 21 MINUTES 40 SECONDS EAST ALONG THE WESTERLY BOUNDARY LINE OF N.Y.S. ROUTE 281 A DISTANCE OF 439.43 FEET TO A POINT IN THE CENTERLINE OF CLARK ROAD;
RUNNING THENCE NORTH 83 DEGREES 34 MINUTES 01 SECONDS WEST MEASURED ALONG THE CENTERLINE OF THE RIGHT OF WAY OF CLARK ROAD A DISTANCE OF 394.69 FEET TO A POINT IN THE CENTERLINE OF STEGER ROAD;
RUNNING THENCE SOUTH 28 DEGREES 05 MINUTES 11 SECONDS WEST A RADIUS DISTANCE OF 730.00 FEET AND CHORD DISTANCE OF 80.15 FEET TO A POINT;
RUNNING THENCE SOUTH 31 DEGREES 14 MINUTES 00 SECONDS WEST A DISTANCE OF 130.00 FEET TO A POINT;
RUNNING THENCE SOUTH 70 DEGREES 23 MINUTES 36 SECONDS EAST A DISTANCE OF 129.30 FEET TO A POINT;
RUNNING THENCE SOUTH 10 DEGREES 02 MINUTES 27 SECONDS WEST A DISTANCE OF 91.71 FEET TO THE POINT OR PLACE OF BEGINNING.
ALSO, ALL THAT TRACT OR PARCEL OF LAND, SITUATE IN THE TOWN OF PREBLE, COUNTY OF CORTLAND AND STATE OF NEW YORK, BEING PART OF LOTS 96 AND 97 OF SAID TOWN, BOUNDED AND DESCRIBED AS FOLLOWS:
BEGINNING AT A POINT IN THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 WHICH POINT IS
LOCATED WESTERLY A DISTANCE OF 502.52 FEET FROM THE INTERSECTION OF THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 WITH THE INTERSECTION OF THE CENTERLINE OF CLARK ROAD;
RUNNING THENCE SOUTH 03 DEGREES 53 MINUTES 03 SECONDS WEST A DISTANCE OF 299.41 FEET TO A POINT MARKED BY A SET ROD/CAP;
RUNNING THENCE NORTH 86 DEGREES 06 MINUTES 54 SECONDS WEST A DISTANCE OF 150.00 FEET TO A POINT MARKED BY A SET ROD/CAP;
RUNNING THENCE NORTH 03 DEGREES 53 MINUTES 03 SECONDS EAST A DISTANCE OF 174.20 FEET TO A POINT IN THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 MARKED BY A FOUND ROD/CAP;
RUNNING THENCE NORTH 54 DEGREES 01 MINUTE 55 MINUTES EAST MEASURED ALONG THE SOUTHERN BOUNDARY LINE OF N.Y.S. ROUTE 281 A DISTANCE OF 195.39 FEET TO THE POINT OR PLACE OF BEGINNING.



SIXTH JUDICIAL DISTRICT FORECLOSURE AUCTION PLAN

In order to implement safe and practical procedures which limit the risk of viral exposure and transmission while maintaining or increasing public access and participation in foreclosure auctions, the following procedures shall, to the extent possible, be implemented within the Sixth Judicial District.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk so as to minimize interaction between auction participants and those having other business near the sale location such as other court proceedings or government business on the premises.
4. No foreclosure auction shall be scheduled in the same location within one hour of another foreclosure auction.
5. To the extent practical, auctions will occur within the Court facility, in rooms large enough to maintain appropriate social distancing of participants and away from locations in which others may gather or wait for other court matters.
6. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to ensure decorum, masking, social distancing and to direct attendees to the proper location.
7. Court Orders and all published notices will direct proper use of masks, social distancing and will clearly identify the date, time and location of the auction.
8. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
9. To the extent possible, appropriate signage will be posted in all auction locations and may include this foreclosure auction plan.

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

10. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
11. At his or her discretion, the Referee may choose not to accept cash.
12. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
13. All persons wishing to bid on properties will provide proof of identification.
14. Bidders will be required to stand and state their names at the time the bid is made.
15. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
16. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
17. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit
18. The amount of the successful bid (the purchase price) and the name and address of the successful bidder, will be recorded.
19. The following specific safety procedures will be followed;
 - Social distancing (minimum of 6 feet) should be maintained from others whether the auction is conducted within or outside the court complex.
 - Personal Protective Equipment (PPE) including face masks, disposable plexiglass face shields and other similar protective face covering will be utilized.
 - Routine cleaning of surfaces, door handles and similar locations before and after auctions as needed, using appropriate cleaning and disinfection methods.
 - Frequent and thorough hand washing is encouraged, as is routine use of hand sanitizers or alcohol disinfectant wipes.
 - Floor markings showing where members of the public should sit or stand at least 6ft. apart.
 - Signage or notice that people need to observe social distancing rules and that the markings on the floor, seats, etc. are placed to show where they should be standing, sitting, etc. in order to do so.

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

- Employee stationed at a desk or podium, etc. at the entry point (protected w/mask, gloves, perhaps face shield, depending on the circumstances) w/a thermal scan thermometer to take the temperature of public entering as well as ensure they are wearing a face covering - if no face covering or temp over 100.0, the person is prohibited from entering.
- Signage to this effect somewhere before they get to the desk/podium, i.e. you are required to have face covering/mask and temperature below 100.0 to enter.
- Hand sanitizer at each workstation for employees and dispensers for the public to use in public areas.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND**

INDEX NO. EF18-420

**WILMINGTON SAVINGS FUND SOCIETY,
FSB, NOT INDIVIDUALLY BUT SOLELY AS
TRUSTEE FOR FINANCE OF AMERICA
STRUCTURED SECURITIES ACQUISITION
TRUST 2018-HB,**

TERMS OF SALE

**SBL#: Section 37.00, Block 01, Lot
10.000**

Plaintiff(s),

**Servicer: PHH Mortgage Corporation
Servicer Telephone: (800) 330-0423**

v.

**ROBERT W. FAIRCHILD, AS HEIR AND
DISTRIBUTE OF THE ESTATE OF JERRY
FAIRCHILD A/K/A JERRY F. FAIRCHILD;
SARA KELLY, AS HEIR AND DISTRIBUTE
OF THE ESTATE OF JERRY FAIRCHILD A/K/A
JERRY F. FAIRCHILD; UNKNOWN HEIRS
AND DISTRIBUTEES OF THE ESTATE OF
JERRY FAIRCHILD A/K/A JERRY F.
FAIRCHILD, and any and all persons unknown to
Plaintiff, claiming, or who may claim to have an
interest in, or general or specific lien upon the real
property described in this action; such unknown
persons being herein generally described and
intended to be included in the following
designation, namely: the wife, widow, husband,
widower, heirs at law, next of kin, descendants,
executors, administrators, devisees, legatees,
creditors, trustees, committees, lienors, and
assignees of such deceased, any and all persons
deriving interest in or lien upon, or title to said real
property by, through or under them, or either of
them, and their respective wives, widows,
husbands, widowers, heirs at law, next of kin,
descendants, executors, administrators, devisees,
legatees, creditors, trustees, committees, lienors and
assigns, all of whom and whose names, except as
stated, are unknown to Plaintiff; SECRETARY OF
HOUSING AND URBAN DEVELOPMENT;
NEW YORK STATE DEPARTMENT OF
TAXATION AND FINANCE BY VIRTUE OF
POSSIBLE UNPAID TAXES FROM THE
ESTATE OF JERRY FAIRCHILD A/K/A JERRY
F. FAIRCHILD; UNITED STATES OF
AMERICA BY VIRTUE OF POSSIBLE UNPAID
TAXES FROM THE ESTATE OF JERRY**

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

FAIRCHILD A/K/A JERRY F. FAIRCHILD,**Defendant(s).**

The premises described in the annexed advertisement of sale (the "Premises"), will be sold under the direction of Patrick Michael Snyder, Esq. - Referee, upon the following terms:

- 1st Ten percent of the purchase price of said premises based on the struck down bid at the auction (the "Purchase Price") will be required to be paid in cash, bank or certified check payable to the order of Patrick Michael Snyder, Esq. - Referee, or such other form acceptable to the Referee, at the time and place of sale, and for which the Referee's receipt will be given (the "Initial Payment").
- 2nd The residue of said purchase money will be required to be paid by bank or certified check payable to the order of the Referee or such other form acceptable to the Referee, whose office is located at 70 Port Watson Street, Cortland, NY 13045, by the 30th day from the date of the foreclosure sale (in the event that said date falls on a holiday or weekend, payment shall be made on the soonest date thereafter), when the referee's deed will be ready for delivery (hereinafter the "Closing Date"). Except as provided for herein, TIME IS OF THE ESSENCE with respect to the Closing Date as to the Purchaser only.
- 3rd The Referee is not required to send any notice to the Purchaser and if Purchaser neglects to call or fails to appear, ready, willing and able to complete the purchase at the time and place above specified to receive the deed, the Purchaser will be in default of its obligations hereunder.
- 4th In the event that the Plaintiff shall in its sole and absolute discretion, agree to extend the Closing Date, it shall not be extended for more than thirty (30) calendar days (hereinafter referred to as the "Extended Date") and such extension shall be granted only on the following terms and conditions: (a) Purchaser shall pay to the Plaintiff or its assignees in cash, bank or certified check interest at the rate of nine percent (9%) per annum on the total Purchase Price during the period of such extension (in no event shall the rate of interest charged hereunder be in excess of the maximum rate provided by applicable law); (b) Purchaser shall pay all costs and expenses incurred by the Plaintiff in connection with the granting of said extension; (c) Purchaser shall assume all responsibility for the common charges, taxes, insurance and other costs or payments of any kind required to be paid by the Referee herein and the risk of loss or damage from any cause whatsoever during the period of such extension; (d) TIME SHALL BE OF THE ESSENCE with respect to the Extended Date as to the Purchaser only.
- 5th Except as set forth herein, all taxes, assessments, water rates and other encumbrances which, at the time of the public auction, are liens upon said premises, will be paid by the Referee or will be allowed to the Purchaser, provided that the Purchaser shall previous to the delivery of the deed, produce to the Referee proof of payment of such liens. Purchaser shall pay to the Referee or to the plaintiff in addition to the purchase price, any and all taxes, assessments, water rates and other encumbrances which are a

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

lien as of the date of sale but are not due until a date later in time than the foreclosure sale date. In the event that the plaintiff shall have advanced monies for taxes, assessments, water charges, sewer rents or hazard insurance covering a period which is later in time than the foreclosure sale date, Purchaser herein agrees to reimburse plaintiff for such advances.

- 6th The Purchaser of said premises, or any portion thereof, will, at the time and place of sale, sign a memorandum of his purchase, and an agreement to comply with the terms and conditions of sale herein contained.
- 7th In case any Purchaser shall fail to comply with any of the above conditions of sale, the premises so struck down to him will be again put up for sale under the direction of the Referee under these same terms of sale, and in addition to any other liability of the Purchaser hereunder, such Purchaser will be held liable for any deficiency there may be between the Purchase Price on the sale and the Purchase Price on the resale and also for any costs or expenses occurring on such resale, including but not limited to Plaintiff's reasonable attorney's fees, disbursements and advertising costs.
- 8th In the event the Purchaser fails for any reason to comply in any way with these Terms of Sale, then the Purchaser shall have no further rights to any monies (including without limitation the Initial Payment and any payment made in connection with an extension) deposited with the Referee (the "Partial Payment"), and the Referee is directed to tender the Partial Payment to plaintiff within ten (10) days of the date of Purchaser's default, which sum shall reduce the amount which defendant Mortgagor owes to the Plaintiff, including but not limited to any and all additional expenses arising out of Purchaser's failure to comply with these Terms of Sale.
- 9th Notwithstanding any provision contained herein to the contrary, in the event the title is unable to be conveyed for whatever reason whatsoever, except for the default of the Purchaser, the Purchaser's sole remedy shall be a return of the Initial Payment or Partial Payment. In that event, the Purchaser shall have no further rights against the Referee or the Plaintiff.
- 10th The Purchaser will execute any and all documents required by the Referee in connection with this transfer, including, without limitation, Real Property Transfer Tax forms, New York State Transfer Gains Tax forms, New York State Equalization forms and indemnity agreements.
- 11th All deed stamps, transfer taxes and recording fees, if any shall be paid by the Purchaser.
- 12th The Premises are sold "AS IS" as of the date of the foreclosure sale, without any representations either express or implied.
- 13th The property will be sold subject to:
- (a) The state of facts an accurate survey will show;
 - (b) All covenants, restrictions, easements, declarations, rights of way, agreements

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168-

RECEIVED NYSCEF: 01/26/2024

- and reservations, if any, of record and to any and all violations thereof;
- (c) Any and all building and zoning regulations, restrictions, ordinances and amendments thereto of the municipality, the State, the Federal Government, or any agency, bureau, commission or department in which said premises are situated, and to any violations or notices of violations of the same, including, but not limited to, reapportionment of lot lines, and vault charges, if any;
 - (d) Any and all orders or requirements issued by any governmental body having jurisdiction against or affecting said premises and violations of the same;
 - (e) Rights of tenants or persons in possession, if any;
 - (f) Prior mortgages and judgments, if any, now liens of record;
 - (g) The right of redemption of the United States of America, if any;
 - (h) Rights of any defendants pursuant to CPLR Section 317, CPLR Section 2003, CPLR Section 5015, RPAPL 1304 and RPAPL 1302-a, if any;
 - (i) If the premises are part of a condominium or Planned Urban Development ("PUD"), the declaration and the by-laws of the condominium pertaining to the premises; and
 - (j) Outstanding condominium charges, if any, that have not been extinguished by the foreclosure sale; and
 - (k) Any and all Hazardous Materials in the Premises including, but not limited to, flammable explosives, radioactive materials, hazardous wastes, asbestos or any material containing asbestos, and toxic substances.
 - (l) Any work that may have been performed on the premises by the City of New York or any demand made by the City for any work that may result in charges by the New York City Department of Rent and Housing Maintenance, Emergency Services, The New York City Department of Environmental Protection for Water Tap Closing or any related work; and the New York City Department of Health, which liens are not of record at the time of sale;
 - (m) Any notice of appeal(s).

14th The Referee and/or the Plaintiff have not made and do not make any representations as to the physical condition, rents, leases, expenses, operation or any other matter or thing affecting or relating to the premises, except as herein specifically set forth, and the Purchaser hereby expressly acknowledges that no representations have been made.

15th The sale of the property is subject to plaintiff's right to negotiate a settlement with the mortgagors for redemption of the property and/or reinstatement of the loan up to the time of sale. In the event a settlement agreement is reached with the mortgagors prior to the auction of this property, and the sale inadvertently proceeds despite such settlement agreement, the sale of this property shall be deemed null and void and all deposits received shall be timely returned. The successful bidder shall have no further rights or recourse against plaintiff or the referee other than the return of the down payment.

16th In the event a bankruptcy petition is filed, prior to the scheduled foreclosure sale, by any party with an interest in the subject premises, which bankruptcy filing stays the foreclosure sale of the subject premises, the down payment tendered by the successful bidder, at the sale, shall be refunded by the referee and the sale deemed null and void.

~~FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM~~ — — — INDEX NO. EF18-420
 NYSCEF DOC. NO. 168 — — — RECEIVED NYSCEF: 01/26/2024

The successful bidder shall have no further rights or recourse, against plaintiff or the referee, other than the return of the down payment.

- 17th In the event a bankruptcy petition is filed by any party with an interest in the subject premises subsequent to the scheduled foreclosure sale but prior to closing, plaintiff may, at plaintiff's option, make an application to the bankruptcy court within a reasonable time to confirm the sale. In the event the bankruptcy court confirms the sale, a closing shall take place within 30 days of the confirmation. In the event the bankruptcy court does not confirm the sale, the down payment tendered by the successful bidder at the sale shall be refunded by the referee and the sale deemed null and void. The successful bidder shall have no further rights or recourse, against plaintiff or the referee, other than the return of the down payment.
- 18th The Referee and/or the Plaintiff shall not be liable or bound by any verbal or written statements, representations, promises, statements or guaranties, real estate broker's "setups" or information pertaining to the premises furnished by any real estate broker, agent, employee or any other person except as specifically set forth herein. The Referee and/or the Plaintiff IS NOT LIABLE FOR ANY EXPRESS OR IMPLIED WARRANTIES, GUARANTIES, PROMISES OR STATEMENTS OF ANY KIND RELATING IN ANY MANNER TO THE PREMISES. All understandings and agreements heretofore had between the parties are merged in these Terms of Sale, which fully and completely express their agreement. These Terms of Sale cannot be changed or terminated orally and cannot be waived orally. These terms of sale shall be binding on the Purchaser(s) and any heirs, successors and assigns thereof.
- 19th To the extent that the Terms of Sale varies in any way from the Judgment of Foreclosure and Sale, attached, the terms in the Judgment of Foreclosure and Sale control and the variance in the Terms of Sale are null and void. By signing this Terms of Sale, each Third Party Purchaser acknowledges that the signor has read and understands both the Terms of Sale and the attached Judgment of Foreclosure and Sale, that each signor agrees fully to same and represents that each signor is under no duress, has equal bargaining power and has entered into this agreement of the signor's free will with full understanding of the responsibilities and ramifications for doing so.
- 20th Any errors or omissions in computing apportionments and/or allocation of closing costs at closing shall be corrected. This provision shall survive CLOSING and delivery of the Referee's Deed.

Dated:

 Referee
 Patrick Michael Snyder ESQ. - REFEREE

MEMORANDUM OF SALE The undersigned has on this the ____ day of _____, _____ purchased the premises described in the annexed printed advertisement of sale, for the sum of Dollars (\$) and hereby promises and agrees to comply with the terms and conditions of the sale of said premises as above mentioned and set forth.

~~FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM~~ — — INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

Dated:

Purchaser - Signature
Purchaser - Printed Name & Title
Address
Address
Telephone

Received from _____ purchaser,
the sum of _____ Dollars, (\$ _____),

being ten percent on the amount bid by the purchaser for property sold by me under the judgment
in the above entitled action.

Dated:

_____, ESQ. - REFEREE

18-148223 - DaR

FILED: CORTLAND COUNTY CLERK 01/26/2024 10:16 AM

INDEX NO. EF18-420

NYSCEF DOC. NO. 168

RECEIVED NYSCEF: 01/26/2024

Index No.: EF18-420

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF CORTLAND****WILMINGTON SAVINGS FUND SOCIETY, PSB, NOT INDIVIDUALLY BUT SOLELY AS
TRUSTEE FOR FINANCE OF AMERICA STRUCTURED SECURITIES ACQUISITION TRUST
2018-HB,**

Plaintiff(s),

v.

ROBERT W. FAIRCHILD, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; SARA KELLY, AS HEIR AND DISTRIBUTE OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNKNOWN HEIRS AND DISTRIBUTEES OF THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD, and any and all persons unknown to Plaintiff, claiming, or who may claim to have an interest in, or general or specific lien upon the real property described in this action; such unknown persons being herein generally described and intended to be included in the following designation, namely: the wife, widow, husband, widower, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors, and assignees of such deceased, any and all persons deriving interest in or lien upon, or title to said real property by, through or under them, or either of them, and their respective wives, widows, husbands, widowers, heirs at law, next of kin, descendants, executors, administrators, devisees, legatees, creditors, trustees, committees, lienors and assigns, all of whom and whose names, except as stated, are unknown to Plaintiff; SECRETARY OF HOUSING AND URBAN DEVELOPMENT; NEW YORK STATE DEPARTMENT OF TAXATION AND FINANCE BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD; UNITED STATES OF AMERICA BY VIRTUE OF POSSIBLE UNPAID TAXES FROM THE ESTATE OF JERRY FAIRCHILD A/K/A JERRY F. FAIRCHILD,

Defendant(s).

**ORDER CONFIRMING REFEREE REPORT AND JUDGMENT
OF FORECLOSURE AND SALE**

Robertson, Anschutz, Schneid, Crane & Partners, PLLC
Attorneys for Plaintiff
900 Merchants Concourse, Suite 310
Westbury, NY 11590
Telephone: 516-280-7675

18-148223 - DaR

At an ^{1a} I.A.S. Term, part _____ of the
Supreme Court of the County of Cortland
held in the Cortland Supreme Court in the
city of Cortland, New York on the
12th day of January,
20 24.

PRESENT: HON. MARK G. MASLER
SUPREME COURT OF THE STATE OF NEW YORK

-----X
U.S BANK TRUST NATIONAL
ASSOCIATION, NOT IN ITS INDIVIDUAL
CAPACITY BUT SOLELY AS OWNER
TRUSTEE FOR RCF 2 EBO TRUST

Plaintiff

**ORDER CONFIRMING REFEREE
REPORT AND JUDGMENT OF
FORECLOSURE AND SALE**

INDEX #: EF19-548

VS

SHAWN FORD

Defendant(s)

MORTGAGED PREMISES:
2118 GEE HILL ROAD
DRYDEN, NY 13053
AKA 2118 GEE HILL ROAD,
VIRGIL, NY 13053

Mortgage Servicer:
Selene Finance LP
Mortgage Servicer Phone Number:
(877) 735-3637

-----X
UPON the Summons, Complaint and Notice of Pendency filed in this action on May 7,
2019, the Notice of Motion dated December 1, 2023 and the affirmation by Anthony J. Rooney¹
the affidavit of merit and amount due by Korey McGovern who is a Document Execution
Specialist of Selene Finance LP, duly sworn to Colin Gold on February 24, 2023, together with
the Exhibits annexed hereto, all in support of Plaintiff's motion for a Judgment of Foreclosure
and Sale; and



2024-00191

01/12/2024 02:21:27 PM

COURT & TRUST
Brooke Kemak, County Clerk

UPON proof that each of the Defendants herein has been duly served with the Summons and Complaint, has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since Defendants Shawn Ford who have not answered or appeared were so served and/or appeared; and Plaintiff having established to the court's satisfaction that a Judgment against defendants is warranted; and

UPON the Affidavit of mailing reflecting compliance with CPLR §3215(g)(3)(iii); and

UPON proof that the non-appearing defendant Shawn Ford is not absentee, in accordance with RPAPL § 1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Deborah W. Miller, Esq. dated November 12, 2023, showing the sum of \$211,108.94, due as of March 1, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by Anthony J. Rooney, attorney for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all aspects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint ~~and as hereafter described~~, or such part thereof as may be sufficient to discharge

HGM

NGM the mortgage debt, the expense of the sale, and the costs of this action as provided by the RPAPL pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction at the Main Lobby of the Cortland County Courthouse, 46 Greenbush Street, City of Cortland and to the extent possible, at AM/PM by and under the direction of Deborah W. Miller, Esq., P.O. Box 538, Ithaca, NY 14851, (607) 277-0272 who is appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL § 231 in the Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from Appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representatives is present at the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors and/or assigns, or its representatives; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee cannot conduct the sale within 90 days of the date of the judgment, in accordance with CPLR § 2004, for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the Court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase process shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay then percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or SOLA Account in her name as Referee, in accordance with CPLR § 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in

ORDERED, ADJUDGED AND DECREED that the Referee then deposit the balance of
said proceeds of sale in his/her own name as Referee in Said Escrow or SOLA account and shall
thereafter make the following payments in accordance with RPAPL § 1354, as follows:

SECOND: All taxes, assessments and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not apparently become absolute, and any other amounts due in accordance with RPAPL § 1354(2). Purchaser shall be

responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale.

FOURTH: The Referee shall also pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$211,108.94 with interest at the Note rate from March 2, 2023 until entry of this Judgment, together with any advances as provided for in the Note and Mortgage that Plaintiff has made for taxes, insurance, principal, and interest, and any other charges permitted by the terms of the Note and Mortgage or paid to senior mortgagees or to maintain the Property pending consummation of this foreclosure sale that were not included in the Referee's computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the Note and Mortgage until of entry of this Judgment, and then with interest at the statutory rate until the date the Deed is transferred;

Costs and Disbursements. \$2,245.43 adjudged to the Plaintiff for costs and disbursements in this action with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance. \$50.00 is hereby awarded to Plaintiff in addition to costs, HGM

with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees. \$4,161.25 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment.

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354(4) and in accordance with local County rules regarding Surplus monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second" and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above; when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer

tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that the property is sold in one parcel in "as is" physical order and condition, subject any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; any rights pursuant to CPLR § 317, § 2003 and § 5015, or any appeal of the underlying action or additional litigation brought by any Defendant on its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR § 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the Court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355(1) and follow all local County rules

regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve the Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Action Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the Court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it is further

ORDERED, that the sale shall be conducted in accordance with the applicable attached or as subsequently amended judicial district foreclosure auction plan and rules in effect at the time of the auction, and it is further

11/21/24

MGML

Said property is commonly known as 2118 Gee Hill Road, Virgil, New York.
~~The legal description of the mortgaged property referred to herein is annexed hereto as~~

Schedule A:

ENTER,

Dated: January 12, 2024
Cortland, New York

MGML

HON. MARK G. MASLER
JUSTICE OF THE SUPREME COURT

Brooke Kemak



CJ-2024-00212

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.

13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.

14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.

15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.

16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23

At a term of the Supreme Court held in and
for the County of Cortland, at the Courthouse
thereof, on the 11th day of January, 2024.

PRESENT: HON. MARK G. MASLER
Justice Presiding.

STATE OF NEW YORK
SUPREME COURT: COUNTY OF CORTLAND

CITIZENS BANK, N.A.,

Plaintiff(s),

v

**LINDSEY CAROLE FIORE; CLERK OF
CORTLAND COUNTY**

Defendant(s).

**JUDGMENT OF
FORECLOSURE
AND SALE**

Index No.: EF22-385

MORTGAGED PROPERTY:
270 Route 90
Cortland, New York 13048

Mortgage Servicer:
Citizen's Bank, N.A.

Phone #: 800-456-8855

Upon the summons and complaint filed herein on September 8, 2022, and notice of pendency of action previously filed herein on September 8, 2022, and on the attorney's statement of Jose O. Hasbun, Esq., dated May 23, 2023, demonstrating that all of the defendants have been duly served with the summons and complaint herein and the affidavits of service of the defendant previously filed herein, and upon the Order entered herein on July 26, 2023, appointing Dante Armideo, Esq., as referee to ascertain and compute the amount due to the plaintiff pursuant to the note and mortgage and to protect the lien of said mortgage, and to examine and report whether the mortgage premises can be sold in parcels; and affirmation of regularity of George Franke, Esq., sworn to on December 4, 2023; and



2024-00192

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COURT & TRUST
Brooke Kemak, County Clerk

UPON proof that each of the defendants herein has been duly served with the Summons and Complaint in this action, and has voluntarily appeared either personally or by their respective attorneys or has not served any answer to the Complaint or otherwise appeared, nor had their time to do so extended; and it appearing that more than the legally required number of days has elapsed since defendants Lindsey Carole Fiore and Clerk of Cortland County were so served and/or appeared; and Plaintiff having established to the court's satisfaction that judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215 (g) (3) (iii); and

UPON proof that any non-appearing defendants are not absent, in accordance with RPAPL §1321 (2); and

A REFEREE having been appointed to compute the amount due to the Plaintiff upon the bond/note and mortgage set forth in the Complaint, and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the report of Dante Armideo, Esq., dated September 27, 2023, showing the sum of \$258,078.36 was due as of May 1, 2023, and that the mortgaged property may not be sold in parcels; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by McCabe, Weisberg & Conway, LLC, attorneys for plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint, or such part thereof as may be sufficient to discharge the mortgage debt, the expenses of the sale, and the costs of this action as provided by the RPAPL be sold, within 90 days of the date of this Judgment, in one parcel, at a public auction pursuant to the Terms of Sale attached as Exhibit A hereto (the Terms of Sale) and the Sixth Judicial District Foreclosure Auction Plan, a copy of which is also attached to this Judgment, at the Cortland County Courthouse by and under the direction of Dante Armideo, Esq., 39 Church Street, Cortland, New York 13045, (607) 758-8200, who is hereby appointed Referee for that purpose; that said Referee give public notice of the time and place of sale in accordance with RPAPL §231 in The Cortland Standard; and it is further

ORDERED, ADJUDGED AND DECREED that by accepting this appointment, the Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22 NYCRR Part 36), including, but not limited to § 36.2 (c) ("Disqualifications from appointment") and § 36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee is prohibited from accepting or retaining any funds for him/herself or paying funds to him/herself without compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall conduct the foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at the sale or the Referee has received a written bid and signed Terms of Sale from Plaintiff, its successors and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED AND DECREED that if the Referee does not conduct the sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed by RPAPL § 1351 (1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in an escrow or IOLA account in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL § 1353 and the Terms of Sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents, or water rates, which are, or may become, liens on the property at the time of sale, with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee then deposit the balance of said proceeds of sale in her/his own name as Referee in an escrow or IOLA account in his/her own name, and shall thereafter make the following payments in accordance with RPAPL § 1354, as follows:

FIRST; The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003 (b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more. In the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in the sum of \$250 for each adjournment or

cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL § 1354 (2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

Amount Due per Referee's Report: \$258,078.36 with interest at the note rate from May 2, 2023 until date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,063.75 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

No additional allowance is hereby awarded to Plaintiff;

Attorney Fees: \$4,950.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL § 1354 (4) and in accordance with local County rules regarding Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law § 1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First," "Second," "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against Robert Paul Williams a/k/a Robert P. Williams in accordance with RPAPL § 1371 if permitted by law; and it is further

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL § 1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL § 1355 (1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL § 1307 and RPAPL § 1308 to secure and maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof.

Said property is commonly known as 270 Route 90, Cortland, New York 13045.

Dated: January 12, 2024
Cortland, New York

ENTER



HON. MARK G. MASLER
Supreme Court Justice



CJ-2024-00213

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JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

<u>County</u>	<u>Location</u>	<u>Scheduling contact</u>
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS and CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23



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COURT & TRUST
Brooke Kemak, County Clerk

At Part a Term of the Supreme Court held in
the County of Cortland, at the Cortland
Courthouse thereof, on the 22nd day of
January, 2024.

**PRESENT: Hon. Mark G. Masler, J.S.C.
JUSTICE OF THE SUPREME COURT**

CFCU Community Credit Union,
Plaintiff(s),

v.

Nancy Griffin a/k/a Nancy H. Griffin,

Defendant(s).

INDEX NO. EF18-1029

**ORDER CONFIRMING
REFEREE REPORT AND
JUDGMENT OF
FORECLOSURE AND SALE**

MORTGAGED PROPERTY:
3619 McGraw-Marathon Road
McGraw, NY 13101

SBL #: Section 99.00 Block 03
Lot 07.100

Mortgage Servicer:
CFCU Community Credit Union *NGM*
Mortgage Servicer Phone #:
800-428-8340

UPON the Summons, Complaint, and Notice of Pendency filed in this action on the 21st
day of September, 2018, on the Additional Notice of Pendency filed on the 24th day of August,
2021, the Notice of Motion dated December 27, 2023, the affirmation by Barbara Dunleavy,
NGM dated December 27, 2023,
Esq., the affidavit of merit and amount due by Amber Parker, who is Asset Recovery
Supervisor, duly sworn to on July 26, 2023, together with the exhibits annexed thereto, all in
support of Plaintiff's motion for a Judgment of Foreclosure and Sale; and

UPON proof that each of the defendants herein has been duly served with the Summons
and Complaint in this action, and has not served any answer to the Complaint or otherwise
appeared, nor had their time to do so extended; and it appearing that more than the legally
required number of days has elapsed since defendant, Nancy Griffin a/k/a Nancy H. Griffin, was

so served and/or appeared; and Plaintiff having established to the court's satisfaction that a judgment against defendants is warranted; and

UPON the affidavit of mailing reflecting compliance with CPLR 3215(g)(3)(iii); and

UPON proof that non-appearing defendant, Nancy Griffin a/k/a Nancy H. Griffin, is not absent; in accordance with RPAPL §1321(2); and

A Referee having been appointed to compute the amount due to Plaintiff upon the bond/note and mortgage set forth in the Complaint and to examine whether the mortgaged property can be sold in parcels; and

UPON reading and filing the Report of Donald C Armstrong Esq dated November 14, 2023, showing the sum of \$98,274.11 due as of the date of said Report and that the mortgaged property may not be sold in parcels; and

UPON reading the report of Mardis F. Kelsen, Esq., Guardian Ad Litem and Military Attorney, appointed pursuant to an Order of this Court, and the various other papers of said Guardian previously filed herein; and

UPON proof of due notice of this motion upon all parties entitled to receive same, and upon all the prior proceedings and papers filed herein;

NOW, on motion by LOGS Legal Group LLP f/k/a Shapiro, DiCaro & Barak, LLC, attorneys of record for the Plaintiff, it is hereby

ORDERED, ADJUDGED AND DECREED, that the motion is granted; and it is further

ORDERED, ADJUDGED AND DECREED, that the Referee's Report be, and the same is, hereby in all respects ratified and confirmed; and it is further

ORDERED, ADJUDGED AND DECREED, that the mortgaged property described in the Complaint and ~~as hereafter described~~, or such part thereof as may be sufficient to discharge

the mortgage debt, the expenses of the sale, and the costs of this action as provided by the
pursuant to the Terms of Sale and Foreclosure Auction Plan attached as Exhibit A
 RPAPL be sold within 90 days of the date of this Judgment, in one parcel, at a public auction^{MGM} at
 the Cortland County Courthouse, Cortland, New York 13045, by and under the direction of
 Donald C Armstrong, Esq, 16 Tompkins Street, PO Box 828, Cortland, NY 13045, 607-756-
 7501 who is hereby appointed Referee for that purpose; that said Referee give public notice of
 the time and place of sale in accordance with RPAPL §231 in *the Cortland Standard*; and it is
 further

ORDERED, ADJUDGED AND DECREED, that by accepting this appointment, the
 Referee certifies that he/she is in compliance with Part 36 of the Rules of the Chief Judge (22
 NYCRR Part 36), including, but not limited to §36.2(c) ("Disqualifications from appointment")
 and §36.2 (d) ("Limitations on appointments based upon compensation"); and, if the Referee is
 disqualified from receiving an appointment pursuant to the provisions of that Rule, the Referee
 shall immediately notify the Appointing Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee is prohibited from
 accepting or retaining any funds for him/herself or paying funds to him/herself without
 compliance with Part 36 of the Rules of the Chief Administrative Judge; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall conduct the
 foreclosure sale only if Plaintiff, its successors and/or assignees, or its representative is present at
 the sale or the Referee has received a written bid and Terms of Sale from Plaintiff, its successors
 and/or assigns, or its representative; and it is further

ORDERED, ADJUDGED, AND DECREED that if the Referee does not conduct the
 sale within 90 days of the date of the judgment, in accordance with CPLR 2004, the time fixed

by RPAPL §1351(1) is extended for the Referee to conduct the sale as soon as reasonably practicable; and it is further

ORDERED, ADJUDGED, AND DECREED that at the time of sale the Referee shall accept a written bid from the Plaintiff or the Plaintiff's attorney, just as though Plaintiff were physically present to submit said bid; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall accept the highest bid offered by a bidder who shall be identified upon the court record, and shall require that the successful bidder immediately execute Terms of Sale for the purchase of the property, and pay to the Referee, in cash or certified or bank check, ten percent (10%) of the sum bid, unless the successful bidder is Plaintiff in which case no deposit against the purchase price shall be required; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event the first successful bidder fails to execute the Terms of Sale immediately following the bidding upon the subject property or fails to immediately pay the ten percent (10%) deposit as required, the property shall immediately and on the same day be reoffered at auction; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee shall then deposit the down payment and proceeds of sale, as necessary, in the Referee's I.O.L.A. account maintained for legal clients, in his/her own name as Referee, in accordance with CPLR 2609; and it is further

ORDERED, ADJUDGED AND DECREED, that after the property is sold, the Referee shall execute a deed to the purchaser, in accordance with RPAPL §1353 and the terms of sale, which shall be deemed a binding contract; and it is further

ORDERED, ADJUDGED, AND DECREED that, in the event a party other than the Plaintiff becomes the purchaser at the sale, the closing of title shall be held no later than 30 days after the date of such sale unless otherwise stipulated by all parties to the sale; and it is further

ORDERED, ADJUDGED, AND DECREED that, if Plaintiff (or its affiliate, as defined in paragraph (a) of subdivision 1 of section six-1 of the Banking Law) is the purchaser, such party shall place the property back on the market for sale or other occupancy: (a) within 180 days of the execution of the deed of sale, or (b) within 90 days of completion of construction, renovation, or rehabilitation of the property, provided that such construction, renovation, or rehabilitation proceeded diligently to completion, whichever comes first, provided however, that a court of competent jurisdiction may grant an extension for good cause; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee, on receiving the proceeds of such sale, shall forthwith pay therefrom, in accordance with their priority according to law, all taxes, assessments, sewer rents or water rates, which are, or may become, liens on the property at the time of sale with such interest or penalties which may have lawfully accrued thereon to the date of payment; and it is further

ORDERED, ADJUDGED, AND DECREED that the Referee then deposit the balance of said proceeds of sale in his/her own name as Referee in their I.O.L.A. account maintained for legal clients, and shall thereafter make the following payments in accordance with RPAPL §1354, as follows:

FIRST: The Referee's statutory fees for conducting the sale, in accordance with CPLR 8003(b), not to exceed \$750.00 unless the property sells for \$50,000.00 or more or in the event a sale was cancelled or postponed, Plaintiff shall compensate the Referee in

the sum of \$ 250 for each adjournment or cancellation, unless the Referee caused the delay;

SECOND: All taxes, assessments, and water rates that are liens upon the property and monies necessary to redeem the property from any sales for unpaid taxes, assessments, or water rates that have not become absolute, and any other amounts due in accordance with RPAPL §1354(2). Purchaser shall be responsible for interest and penalties due on any real property taxes accruing after the sale. The Referee shall not be responsible for the payment of penalties or fees pursuant to this appointment. The Purchaser shall hold the Referee harmless from any such penalties or fees assessed;

THIRD: The expenses of the sale and the advertising expenses as shown on the bills presented and certified by said Referee to be correct, duplicate copies of which shall be annexed to the report of sale;

FOURTH: The Referee shall then pay to the Plaintiff or its attorney the following:

MGM
 Amount Due per Referee's Report: \$98,274.11 with interest at the note rate from June 14, ¹⁵2023 until the date of entry of this judgment, together with any advances as provided for in the note and mortgage which Plaintiff has made for taxes, insurance, principal, and interest, and any other charges due to prior mortgages or to maintain the property pending consummation of this foreclosure sale, not previously included in the computation, upon presentation of receipts for said expenditures to the Referee, all together with interest thereon pursuant to the note and mortgage, and then with interest from the date of entry of this judgment at the statutory rate until the date the deed is transferred;

Costs and Disbursements: \$2,740.00 adjudged to the Plaintiff for costs and disbursements in this action, with interest at the statutory judgment rate from the date of entry of this judgment;

Additional Allowance: \$ - 0 - is hereby awarded to Plaintiff in addition to costs, with interest at the statutory judgment rate from the date of entry of this judgment, pursuant to CPLR Article 83;

Attorney Fees: \$5,225.00 is hereby awarded to Plaintiff as reasonable legal fees herein, with interest at the statutory rate from the date of entry of this judgment;

FIFTH: Surplus monies arising from the sale shall be paid into court by the officer conducting the sale within five days after receipt in accordance with RPAPL §1354(4) and funds shall be deposited with the Clerk of the Court; and it is further

ORDERED, ADJUDGED AND DECREED that if the Plaintiff is the purchaser of the property, or in the event that the rights of the purchasers at such sale and the terms of sale under this judgment shall be assigned to and be acquired by the Plaintiff, and a valid assignment thereof is filed with said Referee, said Referee shall not require Plaintiff to pay in cash the entire amount bid at said sale, but shall execute and deliver to the Plaintiff or its assignee, a deed or deeds of the property sold upon the payment to said Referee of the amounts specified in items marked "First", "Second", and "Third" above; that the Referee shall allow the Plaintiff to pay the amounts specified in "Second" and "Third" above when it is recording the deed; that the balance of the bid, after deducting the amounts paid by the Plaintiff, shall be applied to the amount due to Plaintiff as specified in paragraph "Fourth" above; that Plaintiff shall pay any surplus after applying the balance of the bid to the Referee, who shall deposit it in accordance with paragraph "Fifth" above; and it is further

ORDERED, ADJUDGED AND DECREED that all expenses of recording the Referee's deed, including real property transfer tax, which is not a lien upon the property at the time of sale, shall be paid by the purchaser, not by the Referee from sale proceeds, and that any transfer tax shall be paid in accordance with Tax Law §1404; and it is further

ORDERED, ADJUDGED AND DECREED that if the sale proceeds distributed in accordance with paragraphs "First", "Second", "Third", and "Fourth" above are insufficient to pay Plaintiff the Amount Due per the Referee's Report as set forth in paragraph "Fourth" above, Plaintiff may seek to recover a deficiency judgment against ~~Edward A. Griffin and Nancy H. Griffin~~, unless discharged in bankruptcy, in accordance with RPAPL § 1371 if permitted by law; and it is further

MGM

ORDERED, ADJUDGED AND DECREED that the mortgaged property is to be sold in one parcel in "as is" physical order and condition, subject to any condition that an inspection of the property would disclose; any facts that an accurate survey of the property would show; any covenants, restrictions, declarations, reservations, easements, right of way, and public utility agreements of record, if any; any building and zoning ordinances of the municipality in which the mortgaged property is located and possible violations of same; any rights of tenants or persons in possession of the subject property; prior liens of record, if any, except those liens addressed in RPAPL §1354; any equity of redemption of the United States of America to redeem the property within 120 days from the date of sale; and any rights pursuant to CPLR 317, 2003, and 5015, or any appeal of the underlying action or additional litigation brought by any defendant or its successor or assignee contesting the validity of this foreclosure; and it is further

ORDERED, ADJUDGED AND DECREED that the purchaser be let into possession of the property upon production in hand of the Referee's Deed or upon personal service of the Referee's deed in accordance with CPLR 308; and it is further

ORDERED, ADJUDGED AND DECREED that the Defendants in this action and all persons claiming through them and any person obtaining an interest in the property after the filing of the Notice of Pendency are barred and foreclosed of all right, claim, lien, title, and interest in the property after the sale of the mortgaged property; and it is further

ORDERED, ADJUDGED AND DECREED that within 30 days after completing the sale and executing the proper conveyance to the purchaser, unless the time is extended by the court, the officer making the sale shall file with the clerk a report under oath of the disposition of the proceeds of the sale in accordance with RPAPL §1355(1) and follow all local County rules regarding handling of Surplus Monies; and it is further

ORDERED, ADJUDGED AND DECREED that if the purchaser or purchasers at said sale default(s) upon the bid and/or the terms of sale the Referee may place the property for resale without prior application to the Court unless Plaintiff's attorneys shall elect to make such application; and it is further

ORDERED, ADJUDGED AND DECREED that Plaintiff shall serve a copy of this Judgment with Notice of Entry upon the owner of the equity of redemption, any tenants named in this action, and any other parties or persons entitled to service, including the Referee appointed herein; and it is further

ORDERED, ADJUDGED AND DECREED that nothing herein shall be deemed to relieve Plaintiff of any obligation imposed by RPAPL §1307 and RPAPL §1308 to secure and

maintain the property until such time as ownership of the property has been transferred and the deed duly recorded; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

ORDERED, ADJUDGED AND DECREED that, when the Referee files a report of sale, he or she shall concurrently file a Foreclosure Actions Surplus Monies Form; and it is further

ORDERED, ADJUDGED AND DECREED that to ensure compliance herewith, Plaintiff shall file a written report with the court within six months from the date of entry of this judgment stating whether the sale has occurred and the outcome thereof; and it further

Said property is commonly known as 3619 McGraw-Marathon Road, McGraw, NY 13101.

~~The legal description of the mortgaged property referred to herein is annexed hereto as~~ *MGM*
~~Schedule A.~~

ENTER

DATED: *February 15, 2024*
Cortland, New York

MGM

Hon. Mark G. Masler
Justice of the Supreme Court

Attorney certification pursuant
to 22NYCRR §130-1.1-a
is affixed to inside cover.



CJ-2024-00411
02/15/2024 02:35:42 PM

JUDGMENT OF FORECLOSURE AND SALE
Brooke Kemak, County Clerk

**EXHIBIT A TO JUDGMENT OF FORECLOSURE
TERMS OF SALE**

The real property described in the judgment will be sold by the Referee upon the following terms:

1. The property shall be sold in one parcel.
2. Ten percent of the purchase money of said premises will be required to be paid in cash or certified check to the Referee at the time and place of sale, for which the Referee's receipt will be given.
3. The residue of said purchase money will be required to be paid in cash or certified check to the Referee at the Referee's office, on _____ [the Referee shall establish, in consultation with plaintiff's counsel, a reasonable date or number of days following the sale], when the Referee's deed will be ready for delivery.
4. The Referee is not required to send any notice to the purchaser and if purchaser neglects to call at the time and location hereinbefore set forth to receive the deed, the purchaser will be charged with interest thereon at the statutory rate on the whole amount of the purchase, unless the Referee shall deem it proper to extend the time for the completion of said purchase.
5. The purchaser of said premises, will, at the time and place of sale, sign a memorandum of the purchase and an agreement to comply with the terms and conditions of sale contained herein.
6. The bidding will be kept open after the property is struck down and in case any purchaser shall fail to comply with any of the conditions of sale set forth herein, the premises so struck down to purchaser will be again put up for sale under the direction of the Referee under these same terms of sale, without application to the Court, unless the plaintiff's attorney(s) shall elect to make such application; and such purchaser will be held liable for any deficiency there

may be between the sum for which said premises shall be struck down upon the sale, and that for which they may be purchased on the resale, and also for any costs or expenses occurring on such resale.

7. The real property shall be sold subject to:

- a. The rights of the public in any part of the property located within the bounds of any street, alley, or highway.
- b. Any state of facts an accurate survey would show.
- c. All covenants, conditions, easements, agreements restrictions and encumbrances of record.
- d. All zoning ordinances and building codes in effect and any violation thereof, if any.
- e. The right of redemption by the United States of America, if any.
- f. Rights of tenants or occupants in possession, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- g. Security agreements, conditional bills of sale and chattel mortgages, if any, to the extent they were not barred and foreclosed by the Judgement of Sale.
- h. The filing of any bankruptcy petition which has the effect of staying or nullifying the sale.

Dated: _____

Referee Signature

[END OF DOCUMENT]



SIXTH JUDICIAL DISTRICT AMENDED FORECLOSURE AUCTION PLAN

Pursuant to the Order of the Chief Administrative Judge, AO/35/22, the Sixth Judicial District continues to require submission of requests for public foreclosure auction dates in accordance with the following procedures before any foreclosure sale can proceed to auction.

1. A Plaintiff or Referee seeking to schedule a foreclosure auction shall submit a request for a date and time to the Supreme Court Clerk of the appropriate County. The Clerk shall respond within three (3) business days and assign a date, time and specific physical location for the conduct of the auction.
2. No foreclosure auction may be scheduled, advertised or conducted without the express prior approval of the Supreme Court Clerk.
3. The date, time and location shall be chosen by the Clerk.
4. To the extent practical, auctions will occur within the Court facility and away from locations in which others may gather or wait for other court matters.
5. To the extent possible, court security will be provided with notice of the date, time and location of foreclosure auctions to allow them to direct attendees to the proper location.
6. Referees appointed to conduct the sale shall be authorized to direct compliance with these requirements as a condition of participation in the auction.
7. The Terms of Sale should be posted before the auction begins. The Referee shall afford prospective bidders time to review the Terms of Sale.
8. At his or her discretion, the Referee may choose not to accept cash.
9. A successful bidder should have in his/her possession at the time of the bid the full 10% of the sum bid, in cash (if accepted at the referee's discretion) or certified or bank check to be made payable to the Referee.
10. All persons wishing to bid on properties will provide proof of identification.
11. Bidders will be required to state their names at the time the bid is made.

12. No sale will be deemed final until the full 10% deposit has been paid to the Referee and the Terms of Sale has been signed; this must be done immediately following the auction.
13. If a successful bidder fails to immediately pay the deposit and sign the Terms of Sale, the property will be promptly re-auctioned.
14. Bidders are cautioned that the failure to furnish the 10% deposit or sign the Terms of Sale after winning an auction may result in the loss of future bidding privileges. The Court reserves the right to impose penalties for inappropriate behavior or other misconduct as it sees fit.
15. The amount of the successful bid (the purchase price) and the name and address of the successful bidder will be recorded.
16. Auction locations and contact list:

County	Location	Scheduling contact
Broome	Broome County Courthouse 92 Court Street Binghamton, NY	BRM_CivilClerks@nycourts.gov
Chemung	Chemung County Courthouse 224 Lake Street Elmira, NY	ChemungSC@nycourts.gov
Chenango	Chenango County Courthouse West Park Place Norwich, NY	arogers@nycourts.gov ksitts@nycourts.gov
Cortland	Cortland County Courthouse 46 Greenbush Street Cortland, NY	cortlandsc@nycourts.gov
Delaware	Delaware County Courthouse 3 Court Street Delhi, NY	DelawareS_and_CCourt@nycourts.gov
Madison	Madison County Courthouse 138 North Court Street Wampsville, NY	MADSC@nycourts.gov
Otsego	Otsego County Courthouse 193 Main Street Cooperstown, NY	OtsegoSupremeCounty@nycourts.gov
Schuyler	Schuyler County Courthouse 105 9 th Street Watkins Glen, NY	mbgetman@nycourts.gov or call 607-228-3350.
Tioga	Tioga County Courthouse 21 Court Street Owego, NY	Tiogasupreme@nycourts.gov
Tompkins	Tompkins County Courthouse 320 North Tioga Street Ithaca, NY	rmjackson@nycourts.gov TPKSC@nycourts.gov

Revised 7/17/23